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No.

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IN THE  
SUPREME COURT OF THE UNITED STATES

OCTOBER TERM, 1994

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VERNONIA SCHOOL DISTRICT 47J,

*Petitioner,*

v.

WAYNE and JUDY ACTON, guardians ad  
litem for JAMES ACTON,

*Respondents.*

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PETITION FOR A WRIT OF CERTIORARI  
TO THE UNITED STATES COURT OF  
APPEALS FOR THE NINTH CIRCUIT

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PETITION FOR A WRIT OF CERTIORARI

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**QUESTION PRESENTED FOR REVIEW**

Whether Vernonia School District 47J's program of random drug testing of middle and high school student athletes in the absence of individualized suspicion is a constitutionally reasonable "search" under the Fourth Amendment to the United States Constitution?

**STATEMENT PURSUANT TO RULE 29.1**

Petitioner is not a corporation and has no parent companies, subsidiaries or affiliates.

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### **PETITION FOR WRIT OF CERTIORARI**

Petitioner, Vernonia School District  
47J, respectfully petitions for a writ of  
certiorari to review the judgment of the  
United States Court of Appeals for the  
Ninth Circuit in this case.

#### **OPINIONS BELOW**

The opinion of the United States  
Court of Appeals for the Ninth Circuit  
(Pet. App. A, *infra*) is reported at 23  
F.3d 1514 (9th Cir. 1994). The opinion  
of the United States District Court (Pet.  
App. B, *infra*) is reported at 796 F.  
Supp. 1354 (D. Or. 1992).

#### **JURISDICTION**

The opinion and judgment of the  
United States Court of Appeals for the  
Ninth Circuit were filed on May 5, 1994  
(Pet. App. A). Petitioner's timely peti-  
tion for rehearing was denied by that

court by order of July 8, 1994 (Pet. App. C). The jurisdiction of this Court is invoked under 28 U.S.C. § 1254(1).

**CONSTITUTIONAL PROVISION INVOLVED**

**U.S. Const. Amend. IV.**

"The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized."

**STATEMENT OF THE CASE**

Petitioner, Vernonia School District 47J (hereinafter "the District"), established a policy allowing it to conduct urinalysis drug testing of its middle and high school student athletes to protect those students from physical injury and to counteract an epidemic of drug use and disciplinary problems involving student athletes and other students in the District.

Respondents Wayne and Judy Acton, as guardians ad litem for James Acton, a 12-year old student in the 7th grade of Washington Grade School in Vernonia Oregon, objected to the District's drug-testing program and, represented by the ACLU, filed an action under 42 U.S.C. 1983 and 1988 seeking a judicial declaration that the drug-testing policy vio-

lates guarantees in the federal and state constitutions against unreasonable searches. Respondents also sought an injunction against enforcement of the policy.

**Facts Relevant to the Petition.<sup>1</sup>**

Vernonia, Oregon is a small logging community of approximately 3000. The community has a central interest in school district activities in general and in athletics in particular. 796 F. Supp. at 1356 (Pet. App. B at 76a). A significant majority of Vernonia high school and elementary school students participate in District sponsored athletics. *Id.*,

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<sup>1</sup> The Ninth Circuit found no clear error in the district court's findings of fact. 23 F.3d at 1519 (Pet. App. A at 20a). The facts stated herein are therefore largely taken from the district court's findings. On occasion, petitioner will cite to facts recited by the Ninth Circuit.

(Pet. App. B at 77a.)<sup>2</sup>

Although discipline and drug use had not previously been a significant problem in the Vernonia schools, beginning in the mid-to-late 1980s, the teaching staff began noticing "a startling and progressive increase in students' use of drugs and alcohol." *Id.*, (Pet. App. B at 78a.) The administration investigated the source and attempted to address this increasing problem through education. 796 F. Supp. at 1357 (Pet. App. B at 82a-84a).<sup>3</sup> Yet, as time passed, the glamor-

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<sup>2</sup> Interscholastic athletics play a dominant role in the Vernonia community and student athletes are well known and admired. Approximately 60-65% of the high school students and 75% of the elementary school students participate in District sponsored athletics. *Id.*, (Pet. App. B at 76a-77a.)

<sup>3</sup> Initially, the Vernonia High School principal met with the teaching staff and asked them to gauge the magnitude of the drug and alcohol problem and to determine what responsive steps should be taken. The school administration first attempted to deter drug and alcohol use through education. Special classes were held on the effect and addictive nature of drugs. The school

ization and use of drugs and alcohol became more blatant. Students boasted about drug use. Drug paraphernalia was confiscated on school grounds, and open use of drugs was observed at a local cafe across the street from the high school. Class decorum suffered. Outbursts of profane language during class, rude and obscene statements directed at other students and "a general flagrant attitude that there was nothing the school could do about their conduct or their use of drugs or alcohol" typified a usual day. 796 F. Supp. at 1356-57 (Pet. App. B at 79a-80a). There was an almost three-fold

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administration invited well-known speakers to address the students, hoping the speakers could reach the students. Seminars within classes, polls, and theatrical presentations were all tested but failed to achieve any significant impact on the disruptive atmosphere. The day after the presentation of a play directed at the problems caused by drug use, several sophomore athletes were caught cutting classes to hold a party where arrests took place for the use of intoxicants. *Id.*

increase in classroom disruptions and disciplinary reports between 1986 and 1989.<sup>4</sup>

Drug and alcohol use invaded the sports program. 796 F. Supp. at 1357 (Pet. App. B at 80a). In fact, the administration determined that the leading student athletes were also the leaders of the drug activity, thus endangering "the very center of activity of the school and the community." *Id.*, (Pet. App. B at 82a-83a). Students consumed alcohol in a bus after a game. Others stole alcohol from a store after a track meet. At

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<sup>4</sup> Vernonia teachers felt upset and helpless as students increasingly expressed their attraction to, and vocal defense of, the use of drugs. One teacher, who had never experienced classroom discipline problems in the past, was ready to give up 15 years of service because of her frustration in dealing with this new situation. Organizations formed within the student drug culture, taking such names as the "Big Elk" or the "Drug Cartel." Loud "bugling" or "head butting" became the symbols for these groups. 796 F. Supp. at 1356 (Pet. App. B at 79a-80a).

least one of the student organizations which formed within the drug culture--the Big Elk--was composed largely of athletes. Athletes turned in classroom assignments which bragged about drug use. 23 F.3d at 1516 (Pet. App. A at 3a-4a).

Ron Svenson, a teacher and coach, testified that suspected drug use contributed to the serious injury of a wrestler who failed to execute a basic maneuver. Likewise, the football coach gave "convincing testimony" that drug use affected certain football players who ignored or forgot well-drilled safety routines. 796 F. Supp. at 1357 (Pet. App. B at 81a). Parents reported that they had heard of drug use on a football trip and, when confronted by the principal, students admitted that they had used marijuana. 23 F.3d at 1516 (Pet. App. A at

4a). Svenson expressed a concern that use of intoxicants slowed the reaction time of athletes, and thereby made them more susceptible to injury. 796 F. Supp. at 1357 (Pet. App. B at 81a).<sup>5</sup> That concern was corroborated by testimony from Dr. Robert L. Dupont, a nationally recognized expert on drug abuse.<sup>6</sup>

The school administrators feared that the corruption of the school's leading athletes would have a significant poisoning impact upon the broader student population, including the younger and

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<sup>5</sup> Svenson also testified that a student injured in a regular physical education class is much more apt to disclose an injury than one engaged in interscholastic activity, given the highly competitive atmosphere of the latter. This sense of pride and desire to stay in the game, when coupled with the numbing influence of drugs, became a significant concern to all involved in the athletic program. *Id.*, (Pet. App. B at 82a).

<sup>6</sup> Dr. DuPont explained the deleterious effects of drugs and alcohol on a teenager's motivation, memory, judgment, reaction, coordination and performance. *Id.*, (Pet. App. B at 81a).

more impressionable elementary school students who emulated the older athletes. *Id.*, (Pet. App. B at 83a).

The evidence at trial "amply demonstrate that the administration was at its wits end and that a large segment of the student body, particularly those involved in interscholastic athletics, was in a state of rebellion." *Id.*, (Pet. App. B at 85a). Disciplinary actions had reached "epidemic proportions." *Id.* The administration concluded that the rebellion "was being fueled by alcohol and drug abuse as well as the student's misperceptions about the drug culture." *Id.*, (Pet. App. B at 85a-86a). The administration also concluded that, unless it took immediate action, the problem would worsen and become more widespread. At one point, the administration felt the

only practical solution was mass expulsion. 796 F. Supp. at 1357-58 (Pet. App. B at 86a).<sup>7</sup>

Having tried all other reasonable alternatives, the District began investigating drug testing in 1988. The District conducted a study of such programs in other parts of the country. 796 F. Supp. at 1358 (Pet. App. B at 86a-87a). The District obtained a lawyer, considered legal opinions and held meetings of interested parents. In 1989, the District board approved a drug testing program. *Id.*, (Pet. App. B at 87a).

The policy involved testing by urinalysis for amphetamines, marijuana, co-

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<sup>7</sup> The Ninth Circuit reviewed the record and found, "... that drug use appeared to be more extreme than it should be and even appeared to be growing. It was sufficient to give them [Vernonia administrators and faculty] concern for the future of the youth they had responsibility for. Based upon the evidence, we cannot say that concern was unreasonable." 23 F.3d at 1519 (Pet. App. A at 20a).

caine and LSD. 23 F.3d at 1517. (Pet. App. A at 7a). It was limited in scope to student athletes and narrowly tailored to effectuate the District's objectives. The District took significant steps to limit the extent of the intrusion, to protect the chain of custody and to maintain the confidentiality of the results. As the Ninth Circuit found, the policy was completely random and vested no discretion in any District officials. 23 F.3d at 1522 (Pet. App. A at 36a-37a).<sup>8</sup>

Penalties imposed for positive tests were progressive, ranging from participation in a drug treatment program with weekly testing to suspension from athletics for the current and two subsequent

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<sup>8</sup> The mechanics of the policy were never in dispute. They are set forth adequately and concisely in the district court's opinion, 796 F. Supp. at 1358-1359 (Pet. App. B at 87a-91a) and in the Ninth Circuit's opinion, 23 F.3d at 1516-17 (Pet. App. A at 4a-6a).

athletic seasons.<sup>9</sup> Results were not disclosed to criminal authorities and could not be used for school disciplinary proceedings such as suspension or expulsion from school. 796 F. Supp. at 1364 (Pet. App. B at 121a).

Finally, as the Ninth Circuit acknowledged, the policy accomplished its

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<sup>9</sup> If a student tested positive and that test was confirmed by a second test, the parents were notified. A due process hearing was then held by the principal with the student and parents. For a first offense, the student was given the option of: (a) participating in an assistance program and taking weekly urinalysis for six weeks; or (b) suspension from athletics for the remainder of the current season and next athletic season. The student would then be retested prior to the start of the next athletic season for which he or she was eligible. 796 F. Supp. at 1358-1359 (Pet. App. B at 91a-92a). As the policy is written, a second offense resulted in the student being suspended from participating in athletics for the remainder of the current season and the next athletic season for which he or she was eligible. 23 F.3d at 1517 (Pet. App. A at 8a). However, although not spelled out in the policy, a student athlete who committed a second offense was allowed to continue participating in sports if he or she submitted to counseling and weekly urinalysis. 796 F. Supp. at 1359 (Pet. App. B at 92a). The third offense resulted in the student's suspension from athletics for the remainder of the current season and the next two athletic seasons. 23 F.3d at 1517 (Pet. App. A at 8a).

desired goal. "Every teacher who testified had noticed an improvement in discipline, a reduction in disciplinary referrals, and a decrease in drug use and the glorification of drug culture since the Policy was implemented." 23 F.3d at 1522 (Pet. App. A at 34a).

#### **Trial Court Proceedings.**

The district court had jurisdiction over the Fourth Amendment claim under 28 U.S.C. § 1331 and supplemental jurisdiction over the Oregon constitutional cause of action under 28 U.S.C. § 1367(a). 23 F.3d at 1517 (Pet. App. A at 10a). The district court ruled that the District's drug-testing policy did not violate either the federal or state constitutions and entered a judgment dismissing the action. 796 F. Supp. at 1368 (Pet. App. B at 143a). The district court found

that several factors weighed in favor of the District's drug testing policy including: (1) evidence of specific instances where coaches had observed athletes performing unsafely under the influence of intoxicants; (2) evidence that athletes in the District's schools were role models for this entire community so that deterring athletes from drug use would also deter other students; (3) the fact that the policy was limited in scope and narrowly tailored to effectuate the District's objectives; (4) the fact that the policy was implemented in a middle and high school setting, where courts should accord deference to school administrators "in matters concerning discipline and maintaining order;" (5) the facts that the District considered and actually tried several alternative meth-

ods of dealing with the increase of drug and alcohol disciplinary problems before instituting its drug testing program, and that less intrusive "screening" methods for detecting drug use have proven ineffective; (6) the facts that the District had taken significant steps to limit the extent of the intrusion including confidentiality of the results, that the results were not disclosed to criminal authorities and that the test results could not be used for school disciplinary proceedings such as suspension or expulsions; and (7) the fact that the program limited the degree of discretion that could be exercised by coaches and school administrators. 735 F. Supp. at 1363-65 (Pet. App. B at 115a-122a).

**The Ruling of the United States Court of Appeals for the Ninth Circuit.**

The Ninth Circuit reversed the judgment of the District Court and held that the District's drug-testing policy violated the Fourth Amendment and therefore violated Article I, Section 9 of the Oregon Constitution. 23 F.3d at 1526 (9th Cir. 1994) (Pet. App. A at 59a-60a).<sup>10</sup> The Ninth Circuit found both that petitioner's drug testing policy contrib-

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<sup>10</sup> The Ninth Circuit noted that the Oregon courts have never decided a random drug testing case, leaving the court "without a compass that clearly points us in the right direction unless we use a federal compass." 23 F.3d at 1518 (Pet. App. A at 16a). The court then stated:

Therefore, in our ensuing discussion we will, to the extent possible, refer to the guideposts set out for us by the Oregon courts. But, particularly in the specific area of urine testing—the core issue in this case—we will unabashedly refer to federal law and decide the case based upon the Fourth Amendment, confident in our view that Oregon itself would do no less.

23 F.3d at 1519 (Pet. App. A at 17a-18a).

uted to reaching the desired goal of reducing drug use among students, and that it was nondiscretionary because it was truly random. 23 F.3d at 1522 (Pet. App. A at 34a-37a). Despite these findings, the Ninth Circuit held:

Given the Fourth Amendment, given our traditions, given our law, we are constrained to hold that the Policy is invalid under the Fourth Amendment. That being so, Oregon would find it invalid under Article I, Section 9, of its Constitution. . . .

23 F.3d at 1527 (Pet. App. A at 65a).

In a concurring opinion, Judge Reinhardt emphasized that the Ninth Circuit's opinion holds that the policy violates the Fourth Amendment to the United States Constitution as well as Article I, Section 9 of the Oregon Constitution. Justice Reinhardt wrote:

Although I am in complete agreement with the reasoning

and the result in Judge Fernandez's opinion for the court, I write separately to emphasize that while our opinion holds expressly that Vernonia School District's drug testing policy is violative of Article I, Section 9 of the Oregon Constitution, it also necessarily holds that the policy violates the Fourth Amendment to the United States Constitution. Indeed, the opinion cannot be read otherwise: there is no way to "avoid" a federal constitutional holding in this case, because Article I, Section 9 and the Fourth Amendment are textually identical and are interpreted "coextensively." Moreover, our decision is based almost exclusively on the application of federal law. Under the circumstances, our holding cannot be confined to one of Oregon law.

23 F.3d 1527 (Reinhardt, J., concurring)  
(Pet. App. A at 65a-66a).

#### REASONS FOR GRANTING THE PETITION

**1. The Holding Below Directly Conflicts with an Existing Seventh Circuit Holding.**

The Ninth Circuit's decision below directly conflicts with an existing hold-

ing by the Seventh Circuit in *Schaill* by *Kross v. Tippecanoe County Sch. Corp.*, 864 F.3d 1309 (7th Cir. 1988) *reh'g denied* (1989).<sup>11</sup> In *Tippecanoe*, the Seventh Circuit held that a high school's random drug testing program, which was very similar to the District's drug testing program, is valid under the Fourth Amendment. 864 F.2d at 1322. As the Ninth Circuit tersely summarized: "[I]n a nutshell, we simply do not agree with the Seventh Circuit." 23 F.3d at 1527. (Pet. App. A at 63a).

The student athletes in *Tippecanoe* and their parents were required to sign a form consenting to urinalysis. The students had assigned numbers, and the num-

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<sup>11</sup> This Court's Rule 10.1(a) includes as one of the reasons it will consider for granting a writ of certiorari: "When a United States court of appeals has rendered a decision in conflict with the decision of another United States court of appeals on the same matter ..."

bers were randomly drawn to select students for testing. Testing was carefully monitored and conducted by a private laboratory, and all positive tests were repeated. Students and parents or guardians were allowed to explain any positive result. 864 F.2d at 1311.

The penalty imposed under the *Tippecanoe* policy was suspension from participation in interscholastic sports, with the percentage of suspension ranging from 30% of remaining games (first positive result) to suspension from all interscholastic sports programs during the remainder of a student's high school career (fourth positive result). No other penalties were imposed and students could decrease the specified punishment by participating in an approved drug counseling program. *Id.*

The school administrators in *Tippecanoe* also faced a serious drug problem among student athletes, although on balance the instant case was even worse. As is noted above, substantial evidence in this case demonstrated "that the administration was at its wits end and that a large segment of the student body, particularly those involved in interscholastic athletics, were in a state of rebellion. 796 F. Supp. at 1357 (Pet. App. B at 85a).

In light of this court's holding in *New Jersey v. TLO*, 469 U.S. 325 (1985), the appellate court in *Tippecanoe* first held that the probable cause and warrant requirements were not applicable to the program, and that the appropriate method for determining constitutionality was to apply the "general fourth amendment stan-

dard of reasonableness." 864 F.2d at 1315. However, because the program was not based upon any individualized suspicion, the court held the school district to a "heavier burden" to justify its program. *Id.* The court balanced the privacy interests of the students against the government's objectives and the nature and degree of the intrusion and then upheld the constitutionality of the policy, concluding:

[T]he convergence of several important factors convinces us that the searches involved here take place in one of the relatively unusual environments in which suspicionless searches are permissible: interscholastic athletes have diminished expectations of privacy, and have voluntarily chosen to participate in an activity which subjects them to pervasive regulation of off-campus behavior; the school's interest in preserving a drug-free athletic program is substantial, and cannot adequately be furthered by less intrusive measures; the

TSC program adequately limits the discretion of the officials performing the search; and the information sought is intended to be used solely for noncriminal educational and rehabilitative purposes. Based on a careful and considered weighing of these factors, we conclude that the TSC urinalysis program does not violate the fourth amendment.

864 F.2d at 1322 (footnote omitted). The court found that the school board in *Tippecanoe* was "entitled to considerable deference" in implementing its drug testing program because the board likely knew "how to best deal with a serious threat to the school's learning environment."

864 F.2d at 1321.

The holding in *Tippecanoe* contrasts starkly with the Ninth Circuit's holding:

Thus, when we mix all of the elements together - the slight weight in favor of efficiency, the privacy interest, the governmental interest, and the discretionary factor - and step back to look at the compound

they yield, it becomes apparent that the Policy violates the Fourth Amendment. It follows that it also violates Article I, Section 9 of the Oregon Constitution.

23 F.3d at 1526 (Pet. App. A at 59a-60a).

The Ninth Circuit squarely acknowledged the direct conflict between its holding and that in the *Tippecanoe* case:

Before concluding, we must acknowledge that in *Schaill v. Tippecanoe County Sch. Corp.*, 864 F.2d 1309 (7th Cir. 1988), the court upheld a random drug testing program very similar to the one we now review. Perhaps that court found a more compelling set of facts than we discover here, but we are unable to say so after reading the opinion. We believe, instead, that the Seventh Circuit has unduly minimized the privacy interests of students. It has also given undue weight to the governmental interest by focusing on the general problems generated by the drug plague, rather than upon the question of whether the danger to safety is so high as to be compelling.<sup>3</sup> We could fill more pages reiterating what we have already said, but, in a nut-

shell, we simply do not agree with the Seventh Circuit.

23 F.3d at 1527 (Pet. App. A at 62a-63a).<sup>12</sup>

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<sup>12</sup> The footnote in the quoted passage says:

We note that the *Schaill* court balanced the students' privacy interests against the school district's "substantial interest in enforcement of its proposed random urinalysis program." 864 F.2d at 1321 (emphasis added). In contrast, subsequent Supreme Court cases have allowed random urinalysis programs only after finding *compelling* governmental interests that outweigh employees' diminished expectations of privacy. See *Skinner*, 489 U.S. at 626-33, 109 S. Ct. at 1418-21; *Von Raab*, 489 U.S. at 670-77, 109 S. Ct. at 1393-96.

23 F.3d at 1527 n. 3 (Pet. App. A at 63a).

The subsequent cases referred to in that footnote apply a "compelling governmental interest" standard to random drug testing in non-school settings. As noted in Section 2 below, given this Court's holding in *New Jersey v. TLO*, 469 U.S. 325 (1985), which allows a more flexible Fourth Amendment standard in schools, it is doubtful that the "compelling governmental interest" standard applies to drug testing by school administrators. Thus, it is unlikely the Seventh Circuit would apply any different standard in the school setting today.

In fact, the Seventh Circuit has since cited *Tippecanoe* without casting any doubt on its continuing validity. In *Dimeo v. Griffin*, 943 F.2d 679 (7th Cir. 1991), the Seventh Circuit, sitting *en banc*, upheld the constitutionality of random drug testing of horse race participants by a state racing board. In doing so, the court

This case therefore presents a clear conflict between the circuits. As a result of the Ninth Circuit's decision, middle and high schools in Oregon, Washington, Idaho, Montana, Nevada, Alaska, Arizona, Hawaii and California are prohibited from conducting random drug testing to safeguard the health and safety of student athletes. On the other hand, high schools in Indiana, Illinois and Wisconsin may conduct such testing.

School officials in other states can only guess as to the constitutionality of drug testing of middle and high school athletes, but will inevitably be deterred by the risk of incurring massive legal ex-

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divided random drug testing cases into three categories: transportation workers, the leading case being *Skinner*; government employees, the leading case being *Von Raab*; and sports cases. The Seventh Circuit in *Dimeo* placed *Tippecanoe* in the third category, saying that the decision there was based "on the idea that the Fourth Amendment applies with diminished force in schools". 943 F.2d at 685.

penses in challenges to the constitutionality of drug testing programs. The federal constitution should not be interpreted to have opposing meanings in different regions of the country, especially on an issue as important as this to the maintenance of our public schools.

**2. This Case Presents the Opportunity for the Supreme Court to Expand its Holding in *New Jersey v. TLO* by Specifically Addressing School Searches in the Absence of Individualized Suspicion.**

This Court recognized that high school students may be treated differently from adults for Fourth Amendment purposes in *New Jersey v. TLO*, 469 U.S. 325 (1985). There, a 14-year-old student was discovered smoking in the lavatory and was taken to the assistant vice principal's office. Upon hearing the report, the assistant vice principal searched the student's purse for ciga-

rettes. During the search, he discovered rolling papers, marijuana, a pipe, a fairly substantial amount of money and possible records of drug sales to other students. Thereafter, the State brought delinquency charges against the student and the admissibility of the items seized by the vice principal was ultimately appealed to the Supreme Court. 469 U.S. at 328-29.

The Supreme Court held that the Fourth Amendment's prohibition on unreasonable searches and seizures applied to searches conducted by public school officials, but that the school setting requires some "easing" of the usual Fourth Amendment restrictions to enable school administrators to preserve order and maintain an adequate, educational environment. 469 U.S. at 334, 339-340. The

Supreme Court held that, ". . . the legality of a search of a student should depend simply on the reasonableness, under all the circumstances, of the search." 469 U.S. at 341. The Court explained further:

Such a search will be permissible in its scope when the measures adopted are reasonably related to the objectives of the search and not excessively intrusive in light of the age and sex of the student and nature of the infraction.

469 U.S. at 342 (footnote omitted).

The Supreme Court noted that it was not at that point deciding "whether individualized suspicion is an essential element of the reasonableness standard we adopt for searches by school authorities." 469 U.S. at 342, n. 8. But the Court added that ". . . the Fourth Amendment imposes no irreducible requirement of such suspicion." *Id.* quoting *United States v. Mar-*

*tinez-Fuente*, 428 U.S. 543, 560-61 (1976). Thus, while *TLO* provided invaluable guidance to school administrators regarding searches of students and certainly shed light on the issue presented in the instant case, it did not directly address the application of the Fourth Amendment in schools in the absence of individualized suspicion. This case presents the Court with an opportunity to address the issue which was not addressed in *TLO*, by deciding if and under what circumstances middle and high school searches without individualized suspicion are constitutionally valid. This issue is of great importance to educators attempting to deal with drug problems in schools.<sup>13</sup> As the administrators

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<sup>13</sup> This Court's Rule 10.1(c) includes as one of the reasons it will consider granting a writ of certiorari: "When a . . . United States court of appeals has decided an important question of

of the District found in this case, the deterrence provided by random drug testing may be the only effective way to deal with a drug use epidemic among school children.<sup>14</sup>

Clearly drug abuse and its attendant discipline problems in public schools nationwide can pose a serious threat to the education of our children, requiring in some circumstances a more flexible Fourth Amendment standard than that applied in non-school settings. As this

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federal law which has not been, but should be, settled by this Court."

<sup>14</sup> At trial, Dr. Dupont testified that visual observations (even by professionals) are not reliable indicators of whether a student has consumed alcohol or drugs. He testified that, since many people do not display outward manifestations of drug or alcohol abuse, application of the reasonable and individualized suspicion standard is an unreliable and impractical tool to aid in preventing accidents before they happen. 796 F. Supp. at 1364 (Pet. App. B at 120a). The District Court found Dr. Dupont's testimony "particularly persuasive on the significant deterrent effects that a random drug testing program can have on a youthful population." 796 F. Supp. at 1363. (Pet. App. B at 116a).

Court noted in *TLO*:

Against the child's interest in privacy must be set the substantial interest of teachers and administrators in maintaining discipline in the classroom and on school grounds. Maintaining order in the classroom has never been easy, but in recent years, school disorder has often taken particularly ugly forms: drug use and violent crime in the schools have become major social problems. See generally 1 NIE, U. S. Dept. of Health, Education and Welfare, Violent Schools--Safe Schools: The Safe School Study Report to the Congress (1978). Even in schools that have been spared the most severe disciplinary problems, the preservation of order and a proper educational environment requires close supervision of schoolchildren, as well as the enforcement of rules against conduct that would be perfectly permissible if undertaken by an adult. "Events calling for discipline are frequent occurrences and sometimes require immediate, effective action." *Goss v Lopez*, 419 U.S., at 580. Accordingly, we have recognized that maintaining security and order in the schools requires a certain degree of flexibility in school disciplinary proce-

dures, and we have respected the value of preserving the informality of the student-teacher relationship. See *id.*, at 582-583; *Ingraham v Wright*, 430 U.S. at 680-682.

469 U.S. at 339-340.

In the instant case, a "large segment of the student body, particularly those involved in interscholastic athletics . . . was in a state of rebellion. Disciplinary action had reached epidemic proportions." 796 F. Supp. 1357 (Pet. App. B at 85a).

At issue here is whether it is reasonable for school authorities to impose random drug testing where they are faced with a drug and disciplinary problem that threatens the very fabric of the school, and where they have tried all lesser measures conceivable by them to deal with the problems created by student drug abuse. School officials across this na-

tion deal with variations on the same, catastrophic theme presented here. The directly opposing holdings in *Tippecanoe* and *Acton* leave public school officials in need of guidance on the standard to be imposed where, as here, a serious drug and classroom discipline problem requires random searches. This Court would do a great service by addressing the unresolved issue in *TLO*: the validity of random testing in public schools in the absence of individualized suspicion.

The Ninth Circuit mentioned *TLO*, but did not pay heed to the requirement of *TLO* that there be an "easing" of Fourth Amendment restrictions and a "degree of flexibility" in the school setting. 23 F.3d at 1522, 1525 (Pet. App. A at 35a-36a and 52a-53a). The Ninth Circuit instead held the school district here to

exactly the same, "compelling governmental interest" standard this Court required for random drug testing in the non-school settings presented in *Skinner v. Railway Labor Executives' Ass'n.*, 489 U.S. 602, 617 (1989) and *National Treasury Employees Union v. Von Raab*, 489 U.S. 656 (1989), 23 F.2d at 1526 (Pet. App. A at 57a-59a). *TLO* authorizes a more flexible standard for searches in schools than for searches in non-school settings.<sup>15</sup> The Ninth Circuit ruled out

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<sup>15</sup> As the district court concluded on the basis of *TLO*:

Although the types and magnitude of safety and security concerns addressed in *Skinner* and *Von Raab* differ from those faced by students, teachers and coaches who participate in middle and high school athletic programs, courts have acknowledged that the public school is a unique setting in which the constraints of the Fourth Amendment are "relaxed." . . . Thus, although student athletes who use drugs do not pose the magnitude of a threat to society that, say, an intoxicated air traffic controller might, the fact that the

such a flexible standard that accounts for the specific problems and concerns of the school setting. In so doing, the Ninth Circuit denied those school officials the "degree of flexibility" this Court has recognized is necessary to maintain security, order and an environment conducive to education in the schools. 469 U.S. at 339-340.

That is patently unfair to a school administration such as the one in *Vernonia* which was "at its wits end." 796 F. Supp. at 1357 (Pet. App. B at 85a). The job of school officials is to educate the children who are their students. Educa-

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searches take place within the school setting, as part of a program designed to maintain discipline, enforce athletic program regulations, and protect the safety of student athletes, is a significant factor that must weigh heavily in any balancing process.

796 F. Supp. at 1361 (Pet. App. B at 102a-105a).

tion cannot occur where, as the district court found here, disciplinary problems are "epidemic" and mass expulsions seem the only reasonable alternative to drug testing. *Id.*, (Pet. App. B at 85a-86a). This Court should specifically consider the issue of suspicionless drug testing in schools in light of its holding in *TLO*.

**3. Educating Children in an Environment Free From Drugs, Excessive Discipline Problems and a Heightened Risk of Physical Injury Justifies Urinalysis Drug Testing of Student Athletes.**

As noted above, given the holding in *TLO*, it is not at all clear that the District was required to show a "compelling governmental interest" to justify its drug testing program. But even if such a showing were required, the Ninth Circuit erred in holding that school officials do not have a compelling governmental inter-

est in dealing with an epidemic of drug use and discipline problems like that presented in the Vernonia schools. In his concurring opinion in *TLO*, Justice Powell, joined by Justice O'Connor, recognized that a state has a "compelling interest" in educating and training its young people:

The primary duty of the school officials and teachers, as the Court states, is the education and training of young people. A State has a compelling interest in assuring that the schools meet this responsibility. Without first establishing discipline and maintaining order, teachers cannot begin to educate their students. And apart from education, the school has the obligation to protect pupils from mistreatment by other children, and also to protect teachers themselves from violence by the few students whose conduct in recent years has prompted national concern. For me, it would be unreasonable and at odds with history to argue that the full panoply of constitutional rules applies with the same

force and effect in the schoolhouse as it does in the enforcement of criminal laws.

469 U.S. at 350 (Powell, J., concurring) (footnote omitted). Similarly, Justice Blackmun, in his concurrence, noted that:

Education "is perhaps the most important function" of government, *Brown v. Board of Education*, 347 U.S. 483, 493, and government has a heightened obligation to safeguard students whom it compels to attend schools.

469 U.S. at 353 (Blackmun, J., concurring).

The Ninth Circuit nevertheless rejected the argument that the District's interest was sufficiently "compelling" to justify drug testing. 23 F.3d at 1526 (Pet. App. A at 57a-59a). The Ninth Circuit acknowledged the tragedy of drug usage by students:

Having uncaring, disrespectful, drug impaired children in our schools is tragic. Having them

anywhere is equally tragic. In fact, it is tragic to have adults of that type in our society. It is widely conceded that what drug usage has done to the fabric of our society is a tragedy of national proportions.

23 F.3d at 1526 (Pet. App. A at 57a-58a).

But the Ninth Circuit apparently did not believe that the conditions facing the Vernonia school administration were "tragic" enough to justify the solution the District was driven to impose. According to the Ninth Circuit, suspicionless drug testing requires, "some additional horrible event, some terrible threat to society that can flow from the presence of drugs - some shooting, some explosion, some crash of train, truck, or aircraft, or some breach of top secret national security." 23 F.3d at 1526 (Pet. App. A at 58a).

In other words, the Ninth Circuit

concluded that the risk of someone being shot or involved in a train crash is of a greater magnitude than the risk that a child participating in high school or middle school athletics will be seriously injured on the playing field as a result of drug use, or that a whole school, following the lead of student athletes, will suffer from an "epidemic" of drug abuse and disciplinary problems. The shootings and train crashes which the Ninth Circuit said justify drug testing may, at first glance, seem more dramatic than the tragedy that faced the teachers and administrators in the Vernonia schools. But that is deceptive.

The situation presented to the teachers and administrators in Vernonia, had it not been promptly remedied, would have had a profound, negative effect on

every student in the Vernonia public schools. It is obvious that education cannot occur in an environment poisoned by a significant number of children abusing drugs. It is equally obvious that school officials cannot preserve the safety of students playing sports under the influence of drugs. As Justice Blackmun noted in his concurrence in *TLO*, government has a "heightened obligation to safeguard" these very students.

469 U.S. at 353.<sup>16</sup> Public school offi-

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<sup>16</sup> Petitioner recognizes that this Court recently denied the petition for writ of certiorari in *University of Colorado v. Derdeyn*, 863 P.2d 929 (Colo. 1993), cert. denied \_\_ U.S. \_\_, 114 S. Ct. 1646 (1994). That case presented the issue of whether the University of Colorado's random, suspicionless drug testing of college athletes violated the Fourth Amendment to the United States Constitution. 863 P.2d at 930. But the instant case is readily distinguishable from *Derdeyn*. Respondents' ward was a 12-year-old grade school student, not an adult intercollegiate athlete at a major university. The District is charged with protecting its young students in a way that a major university for adult students is not. There is also an inculcative role which society has assigned to our grade schools and high schools, which is not expected

cials dedicated to educating and protecting students should not be left without the tools available to accomplish the crucial job our society has assigned to them. This Court should establish a national standard for drug testing in schools.

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of a major university. The duty of establishing discipline, maintaining order, and protecting and nurturing students is far greater in middle schools and high schools than in colleges.

The district court in the instant case pointed out that *Derdeyn* involved students who have, for the most part, reached the age of adulthood, and then distinguished *Derdeyn* as follows:

University programs are far less structured, class attendance is voluntary and discipline is largely left to the students. I also note that the role of an athletic program on a large University is far different than that of a rural middle school or high school with limited alternative activities. 796 F. Supp. at 1363-64, n. 7 (Pet. App. B at 118a).

*Derdeyn* is also distinguishable because there was no evidence in that case of actual drug problems or drug related injuries among the University's athletes. See, *University of Colorado v. Derdeyn*, 863 P2d at 933.

# CONCLUSION

The petition for writ of certiorari should be granted.

Dated: September 28, 1994.

Respectfully submitted,

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## **APPENDICES**

**APPENDIX A**

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UNITED STATES COURT OF APPEALS FOR THE  
NINTH CIRCUIT

No. 92-35520

WAYNE ACTON and JUDY ACTON, guardians ad  
litem for JAMES ACTON,  
*Plaintiffs-Appellants,*

v.

VERNONIA SCHOOL DISTRICT 47J,  
*Defendant-Appellee.*

Argued and Submitted November 3, 1993  
Decided May 5, 1994

[23 F.2d 1514]

Before: Stephen Reinhardt, Melvin  
Brunetti, and Ferdinand F. Fernandez,  
Circuit Judges.

Opinion by Judge Fernandez; Concurrence  
by Judge Reinhardt.

FERNANDEZ, Circuit Judge:

Wayne and Judy Acton, guardians ad  
litem for James Acton, appeal the  
district court's judgment at trial that  
the Vernonia School District's mandatory  
random drug testing policy for

participants in interscholastic athletics ("the Policy") does not violate James's right to be free from unreasonable searches, under either Article I, Section 9 of the Oregon Constitution or the Fourth Amendment. We reverse.

#### BACKGROUND

The District runs two schools, Washington Grade School and Vernonia High School. Several teachers in the District testified that prior to 1985 drugs and alcohol were used by only a small group of students and that there were very few discipline problems in the schools. Between 1985 and 1989, however, teachers and administrators began to perceive a marked increase in disciplinary problems, student drug use, and the glorification of drug culture. Athletic coaches noticed an increase in the number and

severity of injuries, which they attributed to greater drug use. They testified to a number of incidents where students had, or were suspected to have, used drugs. They personally saw some of the problems, but were told of others. Some of the involved students were athletes and others were not. Among other things, one teacher had often seen students smoking marijuana during the school day at a coffee shop across the street from the high school. An English teacher received several essays describing and glorying in scenes of student drug and alcohol use. At one wrestling meet a boy was seriously injured when he failed to perform a basic well-drilled safety maneuver. The student's hotel room smelled of marijuana when the coach later went to check on his

condition. Parents reported that they had heard of drug use on a football trip, and students confronted by the principal admitted that they had used marijuana. Students even formed rowdy groups. One group called itself the "Big Elk." It was composed largely of athletes. Another group called itself the "Drug Cartel."

By 1989, Mr. Aultman, the principal of the grade school, and his faculty felt that they had to do something to combat the growing drug problem. They had attempted drug education programs and even a drug-sniffing dog, but they noticed no decrease in disciplinary problems or in drug use. They decided to institute the Policy.

The Policy was unanimously adopted by the Vernonia School Board in the fall of 1989. By its terms, all students who

want to participate in interscholastic athletics are required to sign a form authorizing the District to perform a drug test on a urine sample provided by the student. All interscholastic student-athletes are tested at the beginning of each athletic season in which they compete. During the season, student athletes are tested at random on a weekly basis.

Boys and girls are tested in different areas of the school. Girls go to the office of Ms. King, the director of girls' athletics, and boys go to the boys' locker room. Each student fills out part of a specimen control form, which assigns a number to the specimen. The faculty monitor then gives the student a testing packet, which contains a cup and a vial. Boys go to the urinals

in the boys' locker room bathroom and produce a specimen in the cup. A male faculty member, either Mr. Aultman or Mr. Svenson, a coach, is seated on a bench some 12 to 15 feet away while the boy urinates. The student remains fully clothed with his back to the monitor. At no time does the monitor have a view of the student's genitals. Aultman and Svenson testified that they do not always watch the student while he produces the specimen, but they generally listen for the normal sounds of urination. After the student produces the specimen, he returns the cup to the monitor who checks it for temperature and obvious signs of tampering. The monitor pours the specimen into the vial. The procedure for girls differs only slightly.

Samples are sent to Metrolab, a private company that specializes in drug testing by urinalysis. Security procedures protect the chain of possession and the identity of the student. The tests screen for creatinine, amphetamines, cocaine marijuana and LSD. They are approximately 99.94% accurate. Test results are reported by telephone to authorized District personnel. Positive tests are mailed to the District's superintendent.

If a student's test returns positive, a second test is administered as soon as possible to confirm the results. The District notifies the student's parents after the second positive test. If the second test is negative, no disciplinary action is

taken. A student who returns two positive tests is given two options. The student may either participate in a drug counseling program for six weeks and submit to weekly drug tests or accept a suspension from the athletic program for the remainder of the current season and the entire following athletic season.

For the second offense, the Policy states that a student is suspended from participating in athletics for the remainder of the current season and the next athletic season, with no other option. The third offense draws a suspension for the remainder of the current season and the next two athletic seasons with no opportunity to reduce the penalty. Any student who refuses to submit to a drug test at any time is suspended from the team for the remainder

of the athletic season.

James was a seventh grader at Washington Grade School during the 1991-92 academic year. In the fall, he tried out for the football team. At the first practice team members were given drug testing consent forms to sign and to have their parents sign. James brought the form home, but he and his parents decided that they did not want to sign the form. Because James refused to consent to drug testing, he was suspended from interscholastic athletics for the season. No evidence suggested that James has ever used drugs or that the District has any reason to suspect that he has.

James's parents brought this action claiming that the Policy violated James's right to be free from unreasonable government searches under both the Fourth

Amendment of the United States Constitution and Article I, Section 9 of the Oregon Constitution. After a trial, the district court rejected both claims. *Acton v. Vernonia Sch. Dist.*, 796 F. Supp. 1354 (D.Or.1992) (*Acton I*). This appeal ensued.

#### JURISDICTION AND STANDARD OF REVIEW

The district court had jurisdiction over the Fourth Amendment claim under 28 U.S.C. § 1331. It had supplemental jurisdiction over the Oregon constitutional cause of action. 28 U.S.C. § 1367(a). We have jurisdiction under 28 U.S.C. § 1291.

We review the district court's findings of fact for clear error. Fed.R.Civ.P. 52(a). "A finding is 'clearly erroneous' when although there is evidence to support it, the reviewing

court on the entire evidence is left with the definite and firm conviction that a mistake has been committed." *United States v. United States Gypsum Co.*, 333 U.S. 364, 395, 68 S.Ct. 525, 542, 92 L.Ed. 746 (1948). Questions of federal law are reviewed de novo, *Bordallo v. Reyes*, 763 F.2d 1098, 1102 (9th Cir.1985), as are questions of state law, *In re McLinn*, 739 F.2d 1395, 1403 (9th Cir.1984) (en banc).

#### DISCUSSION

The Actons assert that the District failed to prove that there actually was a drug problem. They say that there was no foundation upon which to build a drug policy. They go on to argue that even if there were a drug problem, it did not justify a random testing program. We disagree with their first contention, but

agree with the second one.

Before turning to a discussion of the substantive issues, we must address the somewhat arcane question of whether we should decide this case on the basis of the Oregon Constitution or on the basis of the United States Constitution. We have held that when the state and federal constitutional provisions are "coextensive," we can decide the federal constitutional claims because that will also decide the state constitutional claims. See *Los Angeles County Bar Ass'n v. Eu*, 979 F.2d 697, 705 n.4 (9th Cir.1992). However, if they are not coextensive and the state constitution actually gives more protection than the federal constitution, we decide validity under the state constitution in order to avoid addressing federal constitutional

claims unnecessarily. See, e.g., *Ellis v. City of La Mesa*, 990 F.2d 1518, 1524 (9th Cir.1993); *Hewitt v. Joyner*, 940 F.2d 1561, 1565 (9th Cir.1991), cert. denied, — U.S. —, 112 S.Ct. 969, 117 L.Ed.2d 134 (1992). Oregon presents us with a variation on these themes.

The language of Article I, Section 9 of the Oregon Constitution regarding searches and seizures is almost exactly the same as the language of the Fourth Amendment. To the extent the provisions read differently, the Oregon courts have said that the language differences are of no consequence. See *State v. Flores*, 280 Or. 273, 279-81, 570 P.2d 965, 968-69 (1977). Nonetheless, Oregon insists that its constitutional provision can give more protection than the federal constitution and that it sometimes does

so. See *State v. Caraher*, 293 Or. 741, 748-50, 653 P.2d 942, 946-47 (1982); see also *State v. Florance*, 270 Or. 169, 182-83, 527 P.2d 1202, 1208-09 (1974), *overruled on other grounds by Caraher*, 293 Or. at 748-50, 653 P.2d at 946-47. For example, in *Nelson v. Lane County*, 304 Or. 97, 743 P.2d 692 (1987) (*Nelson II*) the court found, in effect, that a roadblock stop violated the Oregon Constitution due to a lack of proper authorization, despite the fact that it would not violate the Fourth Amendment. *Id.* at 101-11, 743 P.2d at 694-700. We say "in effect" because it is not entirely clear whether the authorization requirement is a matter of general law rather than a matter of Oregon constitutional analysis. In any event, it must be taken into account when the

Oregon constitutional provision is analyzed. Furthermore, Oregon courts, or judges on those courts, have gone out of their way to insist that the federal constitutional analysis does not control Oregon search and seizure analysis. See, e.g., *Nelson II*, 304 Or. at 101-02, 743 P.2d at 694; *State v. Boyanovsky*, 304 Or. 131, 137, 743 P.2d 711, 714 (1987) (Gillette, J., specially concurring); *Caraher*, 293 Or. at 748-52, 653 P.2d at 946-48; *Nelson v. Lane County*, 79 Or.App. 753, 760, 720 P.2d 1291, 1296 (1986) (*Nelson I*);<sup>1</sup> see also *State v. Ainsworth*, 310 Or. 613, 619 n.8, 801 P.2d 749, 752 n.8 (1990) (aerial search questions for

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<sup>1</sup> This case was affirmed on other grounds in *Nelson II*. Thus, this iteration of the case is probably not controlling precedent. See *Rogers v. Saylor*, 88 Or.App. 480, 483-84, 746 P.2d 718, 720 (1987), *rev'd on other grounds*, 306 Or. 267, 760 P.2d 232 (1988).

Oregon purposes are different from what they are for federal purposes. The result, however, appears to be the same).

We are therefore constrained, in the first instance, to decide this case on Oregon constitutional grounds. That, however, is no mean task. Oregon law regarding random searches in general is not entirely clear. More importantly, as far as we can ascertain, the Oregon courts have never decided a random drug testing case. We are, therefore, left without a compass that clearly points us in the right direction unless we use a federal compass. We can say with absolute confidence that the Oregon Constitution will not be construed to offer less protection than the Fourth Amendment. It is highly likely that it will be found to offer more protection.

We also take note of the fact that the Oregon Supreme Court itself has often decided cases by declaring that "although . . . at liberty to adopt a stricter test," it will apply Fourth Amendment analysis because that is, at least, a floor. *State v. Tourtillott*, 289 Or. 845, 854, 618 P.2d 423, 427 (1980), cert. denied, 451 U.S. 972, 101 S.Ct. 2051, 68 L.Ed.2d 352 (1981). Having done that, the court has then gone on to state that a particular search violates neither the Fourth Amendment nor Article I, Section 9. *Id.* at 859, 618 P.2d at 430; see also *Flores*, 280 Or. at 277-82, 570 P.2d at 967-70.

Therefore, in our ensuing discussion we will, to the extent possible, refer to the guideposts set out for us by the Oregon courts. But, particularly in the

specific area of urine testing—the core issue in this case—we will unabashedly refer to federal law and decide the case based upon the Fourth Amendment, confident in our view that Oregon itself would do no less.

### I. Evidentiary Questions

The Actons make two basic challenges to the district court's finding that a drug problem existed. They argue that much of the evidence upon which the court relied was inadmissible hearsay. Insofar as the court relied on admissible evidence, they contend that it shows only that the faculty in the District believed that there was a drug problem, not that there actually was one.

The district court found that the Policy is limited to the one activity that is likely to have the greatest

impact "on the drug and alcohol abuse problem[,] " *Acton I*, 796 F. Supp. at 1363, that there was "ample evidence in the record to support the [D]istrict's claim that alcohol and drug use were the primary causes of disruptions and disciplinary problems during school hours," *id.* at 1367, and that "coaches have observed athletes perform poorly and unsafely while under the influence of some intoxicant." *Id.* at 1363.

The underlying evidence need not be extensively reported here. We, however, have read the record. It demonstrates that both the administrators and the faculty beheld instances of drug use and glorification. They also perceived actions of athletes and others that were so far out of the norm that use of drugs was a logical inference. Besides that,

they were told of incidents by others who were concerned and who had no reason to lie. Perhaps dubbing this a "problem" is a matter of perception or definition. What appears to be a problem in one place might seem to be a minor annoyance elsewhere. Suffice it to say that drug use appeared to be more extreme than it should be and even seemed to be growing. It was sufficient to give them concern for the future of the youths they had responsibility for. Based upon the evidence, we cannot say that the concern was unreasonable. Similarly, we cannot say that the district court committed clear error in finding the facts.

However, we reemphasize that what the evidence shows, and all it shows, is that there was some drug usage in the schools, that student discipline had

declined, that athletes were involved, and that there was reason to believe that one athlete had suffered an injury because of drug usage and others may have. Moreover, administrators, teachers, parents, and ultimately the school board were deeply concerned and they developed the Policy in order to deal with the "problem."

## II. Constitutional Analysis

Article I, Section 9 of the Oregon Constitution provides:

No law shall violate the right of the people to be secure in their persons, houses, papers, and effects, against unreasonable search, or seizure; and no warrant shall issue but upon probable cause, supported by oath, or affirmation, and particularly describing the place to be searched, and the person or thing to be seized.

As we have already said and as can be plainly seen, this phraseology is not

materially different from that of the Fourth Amendment. In Oregon, the courts ask three questions when they are considering an Article I, Section 9 search case: was there a search; did the executive official have the authority to conduct the search; and was the search reasonable? So will we.

We first turn to the question of whether the conduct of a government official constitutes a "search" in the constitutional sense. See *State v. Gerrish*, 311 Or. 506, 510, 815 P.2d 1244, 1246 (1991); *Ainsworth*, 310 Or. at 616-17, 801 P.2d at 750. The Oregon Supreme Court has stated that "Article I, section 9, protects privacy and possessory interests from unreasonable governmental intrusion." *Id.* at 617, 801 P.2d at 751; see also *State v. Tanner*, 304 Or. 312,

319, 745 P.2d 757, 760 (1987) ("three interests [are] protected by section 9: privacy, property, and some sort of a . . . right to be protected from undignified, forcible violations of the person") (internal quotation and citation omitted). Any time a government inquiry intrudes upon one of these rights, it is an Article I, Section 9 "search." See *State v. Campbell*, 306 Or. 157, 170-72, 759 P.2d 1040, 1047-49 (1988); *State v. Owens*, 302 Or. 196, 206, 729 P.2d 524, 530 (1986).

Because the Oregon courts have not decided a urine testing case, we turn to Fourth Amendment law to decide if the collection and testing of urine is a search. Of course, it is. See *Skinner v. Railway Labor Executives' Ass'n*, 489 U.S. 602, 617, 109 S.Ct. 1402,

1413, 103 L.Ed.2d 639 (1989). Thus, it cannot be doubted that collection and testing pursuant to the Policy was a search within the meaning of Article I, Section 9. Given the requirements of the Fourth Amendment, it could hardly be otherwise.

The next question is whether the executive officials who executed the search had authority to do so. The Oregon Supreme Court has stated that "the function of [Article I, Section 9] is to subordinate the power of executive officers over the people and their houses, papers, and effects to legal controls beyond the executive branch itself." *AFSCME Local 2623 v. Department of Corrections*, 315 Or. 74, 82, 843 P.2d 409, 414 (1992) (quoting *State v. Weist*, 302 Or. 370, 376, 730 P.2d 26, 29

(1986)). If a search is not authorized, the court's inquiry ends. The search violates the state constitution.

*State v. Atkinson*, 298 Or. 1, 8-11, 688 P.2d 832, 836-38 (1984); see *Nelson II*, 304 Or. at 105-06, 743 P.2d at 696-97.

Constitutionally satisfactory authorization to search may come from one of four sources. First, in most cases, "[a]bsent consent, law enforcement officials must have a warrant to search...." *State v. Bridewell*, 306 Or. 231, 235, 759 P.2d 1054, 1057 (1988). A warrant is always sufficient authorization to search. Next, a warrantless search is permissible if it falls within one of the "specifically established and carefully delineated exceptions to the warrant requirement," that is, consent, search incident to

arrest, plain view, exigent circumstances, inventory search, and "stop and frisk." *Id.* Third, authorization by a legislative enactment that defines and limits official authority satisfies Article I, Section 9 in some cases. *AFSCME*, 315 Or. at 82-83, 843 P.2d at 414. Finally, even if a legislative grant of authority does not sufficiently limit the scope of executive discretion, the executive itself may provide limits by establishing a systematically administered program pursuant to its statutory authority. *Id.*

Oregon courts analyze "criminal" searches and "administrative" searches differently.<sup>2</sup> Criminal searches are only

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<sup>2</sup> The classification of a search depends upon "[t]he purpose of the search and the consequences that flow from it." *Nelson II*, 304 Or. at 104, 743 P.2d at 696. If the consequences of noncompliance with whatever standards the inspection is meant to uphold are noncriminal,

permissible under Article I, Section 9 if they conform with the warrant clause or one of its recognized exceptions. *Nelson II*, 304 Or. at 104, 743 P.2d at 696. By contrast, the warrant clause and its exceptions do not provide the exclusive authorizations for an administrative search. Oregon courts have also upheld administrative searches against Article I, Section 9 challenge, where they have been authorized by legislative enactments or administered according to executive programs that sufficiently limit official discretion. *AFSCME*, 315 Or. at 82-83, 843 P.2d at 414; see *State v. Boyanovsky*, 304 Or. 131, 133-34, 743 P.2d 711, 712

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the search is "civil, or "administrative." By contrast, if offenders face criminal sanctions, the inspection implicates criminal law enforcement purposes. *Id.* A search in the criminal context can be administrative in nature. See *Atkinson*, 298 Or. at 10-11, 688 P.2d at 837-38 (police inventory search).

(1987). The district court found that the Policy was properly authorized by a politically accountable body when it was adopted by a vote of the Board. *Acton I*, 796 F. Supp. at 1367. That finding is not challenged on appeal.

The third question is whether the search was "reasonable." Here again the analysis proceeds differently for criminal and administrative searches. Criminal searches are reasonable only if authorized by a warrant or an exception to the warrant requirement. No Oregon court has upheld a criminal search without finding that the executive official had a reasonable individualized suspicion that evidence of wrongdoing would be found on the person or at the place being searched. *Nelson II*, 304 Or. at 101, 743 P.2d at 694 ("searches for

evidence to be used in a criminal prosecution, conducted without a warrant or suspicion of wrongdoing violate Article I, section 9"); see also *Boyanovsky*, 304 Or. at 133-34, 743 P.2d at 712 (1987).

Administrative searches conducted pursuant to a warrant or an exception to the warrant requirement are also reasonable. An administrative search satisfies the reasonableness inquiry if its procedures require officers to have an individualized suspicion of wrongdoing before conducting a search. See *AFSCME*, 315 Or. at 83, 843 P.2d at 414. A suspicionless administrative search may also withstand a state constitutional challenge.

In *Tourtillott*, the Oregon Supreme Court held that a fixed game checkpoint,

at which police stop all cars travelling on certain roads to check for hunting licenses, does not violate Article I, Section 9 even though police do not have an individualized suspicion that they will discover evidence of wrongdoing in any particular car. 289 Or. at 859, 618 P.2d at 430. In reaching its decision, the court relied upon an analysis of federal law. In particular, it referred to *Delaware v. Prouse*, 440 U.S. 648, 99 S.Ct. 1391, 59 L.Ed.2d 660 (1979). In *Prouse*, the Court developed a four part analysis for determining the reasonableness of random, suspicionless searches and seizures. As it said, "the permissibility of a particular law enforcement practice is judged by balancing its intrusion on the individual's Fourth Amendment interests

against its promotion of legitimate governmental interests." *Id.* at 654, 99 S.Ct. at 1396. From *Prouse*, four considerations, no one of which is determinative, can be distilled: (1) the importance of the governmental interests; (2) the degree of physical and psychological intrusion on the citizen's rights; (3) the amount of discretion the procedure vests in individual officials; and (4) the efficiency of the procedure - that is how well it contributes to the reaching of its purported goals and how necessary it is. *Id.* at 653-63, 99 S. Ct. 1396-1401. These are the factors that the Oregon Supreme Court identified and adopted. See *Tourtillott*, 289 Or. at 864, 618 P.2d at 433. That court then determined that a random search procedure which passed muster under the factors

"was not unreasonable under either the Fourth Amendment of the United States Constitution or Article I, section 9 of the Oregon Constitution." *Id.* at 859, 618 P.2d at 430.

It has since been suggested that the *Tourtillott* analysis was really made under the Fourth Amendment and was not a complete explication of the reach of Article I, Section 9. See, e.g. *Nelson II*, 304 Or. at 101-02, 743 P.2d at 694. Nonetheless, the Oregon Supreme Court has not substituted a new test, so if some nuance remains to be added to the *Prouse* and *Tourtillott* analysis, we are not aware of what that is. At any rate, we need not enter the lists on that issue. If *Tourtillott* does set forth the proper test under the Oregon Constitution, as it seems to, we must apply what amounts to

the *Prouse* analysis. If it does not, Oregon law is unclear, and we will turn to the federal constitution for guidance. There we find the *Prouse* test. Again, that will at least establish the floor, regardless of where Oregon may later discover the ceiling.

It is clear that the Policy authorizes administrative, not criminal, searches. It is equally clear that the school administrators do not obtain search warrants and do not claim that administration of the tests fits into one of the exceptions to the warrant requirement. Furthermore, the District concedes that, as is the case with most students who are tested, it had no reason to suspect that James has ever taken drugs. Testing is totally suspicionless. As a suspicionless, administrative search

program, the Policy can only withstand Article I, Section 9 challenge if the drug tests that it authorizes are reasonable, under the four factor analysis outlined in *Prouse* and *Tourtillott*.

Two factors weigh in favor of the Policy's constitutionality. The Policy contributed to reaching the desired goal. Every teacher who testified had noticed an improvement in discipline, a reduction in disciplinary referrals, and a decrease in drug use and the glorification of drug culture since the Policy was implemented. Thus, the efficiency factor weighs slightly in favor of the Policy. We say slightly because the exact nature of the goal is not entirely clear. If the goal was to avoid athletic injuries, testing of athletes was certainly a good way to

approach that problem. If the goal was to reduce drug use in the student body in general, testing athletes seems to be a considerably more roundabout way of reaching that goal. Furthermore, if, as the testimony showed, teachers and administrators could detect behavior and physical problems that rather clearly appeared to be drug related, a program designed to target those who displayed the problems might be more efficient, although it might also present difficulties of its own when it came to discretionary enforcement. Of course, the Supreme Court has recognized that a somewhat relaxed standard of suspicion may well justify searches of students. *New Jersey v. T.L.O.*, 469 U.S. 325, 341-42, 105 S.Ct. 733, 743, 83 L.Ed.2d 720 (1985). That does not mean that the

Court decided that no form of individualized suspicion is required in schools. *Id.* at 342 n.8, 105 S.Ct. at 743 n.8. It does overcome some of the difficulty that is often mentioned when individualized testing is suggested. Certainly the Policy seems to have helped the District realize its goals of making the school run more smoothly. Its use and a return to normalcy coincided. Whether random testing was necessary to reach that goal is somewhat more questionable. However, on balance we believe the efficiency factor favors the District's position.

Moreover, neither party contests the district court's finding that drug testing under the Policy is completely random. Testing is initially required of all athletes and then conducted on a

lottery basis throughout the athletic season. It vests no discretion in any District officials. This favors the Policy. That leaves importance and intrusiveness. In this case they are dispositive. They dispose of the Policy.

In *Tourtillott*, the Oregon Supreme Court held that enforcing hunting and fishing laws was a sufficient state interest to justify a checkpoint at which police ask drivers for their hunting licenses, or if none was presented, for their driving licenses and automobile registrations. 289 Or. at 864-67, 618 P.2d at 433-34. The District contends that if the state's interest in freeing its forests and streams from unlicensed hunters and fisherman is important enough to justify a random search procedure, so is its interest in freeing its schools

from the pernicious effects of illegal drugs. We do agree that keeping children away from drugs is at least as important as keeping unlicensed hunters away from the forests, but we must reject the District's argument. The two situations are not at all comparable.

*Tourtillott* merely approved of a checkpoint stop. In 1976, the United States Supreme Court approved fixed immigration checkpoints in Texas and Southern California. *United States v. Martinez-Fuerte*, 428 U.S. 543, 96 S.Ct. 3074, 49 L.Ed.2d 1116 (1976). Because the level of intrusion on privacy was so limited, the Court only required the government to justify the policy with a legitimate interest. *Id.* at 561-62, 96 S.Ct. at 3084-85. The desire to exclude illegal aliens was sufficient.

As we have already said, the Oregon appellate courts have never decided a random drug testing case. The federal courts have. When confronted with a random drug testing case, the Supreme Court did not point to the kind of governmental interest—legitimate—that it found to be sufficient in its earlier checkpoint case. It found a compelling government interest. *Skinner*, 489 U.S. at 628-33, 109 S.Ct. at 1419-22. Oregon would, no doubt, do the same when deciding the case under Article I, Section 9. But left without explicit guidance from the Oregon Courts, we will turn to a Fourth Amendment analysis. That analysis will not only uncover the legal principles, but will also flesh them out by some consideration of the facts of the relevant cases. We will

also consider the private and governmental interests together. While they are separate elements, they are intertwined in any analysis to a very high degree, for they are not separate little weights to be put on a chemist's balance. Rather, different mixtures of the values they represent will yield different results, just as different mixtures of chemicals will yield different reactions.

We start with *Skinner*, where the Court emphasized the need to balance governmental and privacy interests in any Fourth Amendment analysis. *Id.* at 619, 109 S.Ct. at 1414. In *Skinner*, the Court referred to the number of train accidents which had occurred over the last decade and which were drug or alcohol related. *Id.* at 607, 109 S.Ct. at 1408. It went

on to mention the injuries and property loss that had resulted; there had even been 25 fatalities. *Id.* The Court said:

In limited circumstances, where the privacy interests implicated by the search are minimal, and where an important governmental interest furthered by the intrusion would be placed in jeopardy by a requirement of individualized suspicion, a search may be reasonable despite the absence of such suspicion. We believe this is true of the intrusions in question here.

*Id.* at 624, 109 S.Ct. at 1417.

The Court emphasized that as a general rule "the collection and testing of urine intrudes upon expectations of privacy that society has long recognized as reasonable...." *Id.* at 617, 109 S.Ct. at 1413. As it said:

There are few activities in our society more personal or private than the passing of urine. Most people describe it by euphemisms if they talk about it at all. It is a

function traditionally performed without public observation; indeed, its performance in public is generally prohibited by law as well as social custom.

*Id.* (quotation and citation omitted.)

However, the Court found that in the pervasively regulated railroad industry, the employees' expectations of privacy were diminished. While they might not be exactly minimal, they were at a rather low ebb because the employees in question had been the principal focus of regulatory concern for a very long time. *Id.* at 627-28, 109 S.Ct. at 1418-19.

Against this rather minimal employee interest the Court set what it described as the compelling interest of the government in testing without a showing of individualized suspicion. It explained that determination as follows: "Employees subject to the tests discharge

duties fraught with such risks of injury to others that even a momentary lapse of attention can have disastrous consequences." *Id.* at 628, 109 S.Ct. at 1419. Given the minimal employee interest and the compelling governmental interest, the Court upheld the drug testing program.

In *National Treasury Employees Union v. Von Raab*, 489 U.S. 656, 109 S.Ct. 1384, 103 L.Ed.2d 685 (1989), the Court was presented with a somewhat different kind of safety concern. There it dealt with certain groups of employees in the Customs Service. Those were employees who were directly involved in drug interdiction or enforcement, those who carried firearms, and those who handled classified material. The Court determined that testing the first two of

these groups was valid; we will discuss the third later in this opinion.

As to the first two areas of coverage, the Court declared that employees involved in the interdiction of drugs and those who carry firearms have a diminished expectation of privacy because, considering the nature of their duties, they "reasonably should expect effective inquiry into their fitness and probity." *Id.* at 672, 109 S.Ct. at 1394. They should expect that reasonable tests will be applied to them.

To some extent the discussion of their expectations was a reiteration of the governmental interest discussion in which the Court declared that those who interdicted drugs are "our Nation's first line of defense against one of the greatest problems affecting the health

and welfare of our population." *Id.* at 668, 109 S.Ct. at 1392. As such, they are subject to trickery, bribes, temptation, and extreme physical danger. Thus they must be "physically fit, and have unimpeachable integrity and judgment." *Id.* at 670, 109 S.Ct. at 1393. Turning to employees who carry guns, the Court said that those "who may use deadly force 'plainly discharge duties fraught with such risks of injury to others that even a momentary lapse of attention can have disastrous consequences.'" *Id.* (citation omitted). Given that analysis of interests, the Court, not surprisingly, determined that the suspicionless testing of those employees was proper.

Our cases have approved the expansion of drug testing to still more

employees, but that has always been in the context of truly serious concerns of a safety nature. In *AFGE Local 1533 v. Cheney*, 944 F.2d 503 (9th Cir.1991), for example, we pointed out that people who are required to hold top secret security clearances are in a position to obtain information "the unauthorized disclosure of which reasonably could be expected to cause exceptionally grave damage to the national-security." *Id.* at 504 (internal quotation omitted). Those individuals, we said, have positions which subject them to regular close review of their personal lives, as a result of which their expectations of privacy are much attenuated. *Id.* at 507. The compelling nature of the government's interest, on the other hand, is found in the gravity of the risk. It takes no hierophant to

see that the very safety of this country and its citizens can be seriously compromised by a drug-afflicted person with access to top secret materials. See also *Department of the Navy v. Egan*, 484 U.S. 518, 527-28, 108 S.Ct. 818, 824, 98 L.Ed.2d 918 (1988).

Our other cases are to the same effect. See *IBEW, Local 1245 v. United States Nuclear Regulatory Comm'n*, 966 F.2d 521 (9th Cir.1992) (*IBEW v. NRC*) (diminished expectation of privacy conceded, and the danger of catastrophic harm in a nuclear accident is compelling); *International Bhd. of Teamsters v. Department of Transp.*, 932 F.2d 1292 (9th Cir.1991) (privacy expectations of truck drivers are markedly reduced, and given the size of commercial trucks and the possible danger

from their loads, the government's interest is compelling); *IBEW, Local 1245 v. Skinner*, 913 F.2d 1454 (9th Cir.1990) (the privacy interest of gas pipeline workers is diminished in this regulated industry, and the terrible accidents that can occur show a compelling government interest); *Bluestein v. Skinner*, 908 F.2d 451 (9th Cir.1990) (diminished expectation of privacy conceded, and the interest of the government in preventing air crash disasters is compelling), *cert. denied*, 498 U.S. 1083, 111 S.Ct. 954, 112 L.Ed.2d 1042 (1991).

The nature of the Fourth Amendment analysis is further illuminated by the Court's comments on those who cannot necessarily be covered by random testing. In *Von Raab*, for example, although the

Court approved testing of front-line and gun-toting workers, it did not as readily accept the notion that for security reasons a compelling government interest justifies the testing of all accountants, animal caretakers, attorneys, baggage clerks, coop students, electrical equipment repairers, mail clerks and messengers in the Customs Department. 489 U.S. at 678, 109 S.Ct. at 1397. The Court returned the case for further findings regarding them. Similarly, in *IBEW v. NRC*, in a concurring opinion joined by two judges of the three-judge panel, we expressed serious doubt that the danger of nuclear accidents justified drug testing of all clerical workers. 966 F.2d at 528-29. See also *Taylor v. O'Grady*, 888 F.2d 1189, 1199 (7th Cir.1989) (while prison employees in

direct contact with prisoners can be tested, other prison personnel cannot be - "generalized interest in the integrity of the work force" is not enough); *Harmon v. Thornburgh*, 278 U.S. App. D.C. 382, 878 F.2d 484, 492-93 (D.C.Cir.1989) (while attorneys with access to top secret information can be tested, other attorneys in the DOJ who merely deal with grand juries and prosecute criminal cases cannot be, as a group), *cert. denied*, 493 U.S. 1056, 110 S.Ct. 865, 107 L.Ed.2d 949 (1990).

It can, therefore, be readily seen that although the courts have been willing—perhaps too willing—to allow employee drug testing, they have done so in cases fraught with danger where the interests of the person to be tested were attenuated. We must consider the

efficacy of the Policy with these principles in mind.

As we turn to our analysis we must be ever mindful that "students [do not] shed their constitutional rights . . . at the schoolhouse gate." *Tinker v. Des Moines Indep. Community Sch. Dist.*, 393 U.S. 503, 506, 89 S.Ct. 733, 736, 21 L.Ed.2d 731 (1969). School boards have:

important, delicate, and highly discretionary functions, but none that they may not perform within the limits of the Bill of Rights. That they are educating the young for citizenship is reason for scrupulous protection of Constitutional freedoms of the individual, if we are not to strangle the free mind at its source and teach youth to discount important principles of our government as mere platitudes.

*West Virginia State Bd. of Educ. v. Barnette*, 319 U.S. 624, 637, 63 S.Ct. 1178, 1185, 87 L.Ed. 1628 (1943).

Children are compelled to attend school, but nothing suggests that they lose their right to privacy in their excretory functions when they do so. While they must attend classes and follow school rules, that does not indicate they have given up their basic privacy rights. It is true, of course, that after a complete application of the balancing test, the Supreme Court did allow individualized searches of students based upon a somewhat lessened standard of suspicion than that which applies elsewhere. But the Court was careful to say that "the situation is not so dire that students in the schools may claim no legitimate expectations of privacy." *T.L.O.*, 469 U.S. at 338, 105 S.Ct. at 741. In fact, the Court suggested, without holding, that a student's

interest in privacy is not of the minimal kind that had been found to justify random searches in the past. *Id.* at 342 n.8, 105 S.Ct. at 743 n.8. There simply is no sufficient basis for saying that the privacy interests of students are much less robust than the interests of people in general.

Nor can we say that the privacy interests of athletes are substantially lower than those of students in general. The District's argument that student-athletes have a reduced expectation of privacy because of their participation in an activity with many rules analogizes to inapposite cases. Training rules and grade point average requirements are not the sort of extensive government regulation that has been found to diminish the expectation of privacy of

workers in high risk industries or high security areas of the government. See, e.g., *IBEW v. NRC*, 966 F.2d at 525 (workers at nuclear power plants); *AFGE*, 944 F.2d at 507 (Navy civilian employees who hold "Top Secret with Access" security clearances); *Bluestein*, 908 F.2d at 456 n.7 (airline workers). High school athletes do not go through extensive background checks in order to join their teams. Nor, in general, do their lives or the lives of others depend upon their ability to perform their roles on the football team. Participation in interscholastic sports does not significantly diminish a high school athlete's reasonable expectation that he will not be compelled to submit to suspicionless drug testing by urinalysis. Appellee's contention that conditions in

the school locker room reduce an athlete's expectation of privacy is similarly unavailing. Normal locker room or rest room activities are a far cry from having an authority figure watch, listen to, and gather the results of one's urination.

We recognize that, in some sense, students, participation in athletics is "voluntary." That, too, is insufficient to reduce their privacy interests to a minimal level. Participation in athletics is obviously highly desirable and encouraged, as this record shows. The fact is that parents wish to have their children obtain the physical and mental benefits of organized sports. That, too, is part of the educational process; part of what tax dollars pay for. While separating mind and body

might be a fine idea for scientific purposes, we have learned that they are inextricably intertwined. In a word, what benefits one, benefits the other. Children, students, do not have to surrender their right to privacy in order to secure their right to participate in athletics. Athletes' right to privacy also remains robust.

But the strength of the government's interests must be considered. Those interests themselves are not minimal. The District wishes to prevent unnecessary athletic injuries, to reduce the attraction of drugs among other students, and to improve discipline. Certainly those are worthy goals. However, worthy as they are, they suffer by comparison to the kinds of dangers that have existed when random testing has

been approved. The extreme dangers and hazards involved in the prior cases are simply not present here. The prospect that an athlete might hurt himself or a competitor is real enough, but it is not a risk of the same magnitude as an airplane or train wreck, or a gas pipeline or nuclear power plant disaster. The concern that our children will fail to acquire knowledge or respect is also real enough, but it, too, does not reach the level of the concerns that have permitted suspicionless testing. All of this is true as a general proposition, and nothing in this record shows a situation or problem so exacerbated as to take it beyond the generality.

Having uncaring, disrespectful, drug-impaired children in our schools is tragic. Having them anywhere is equally

tragic. In fact, it is tragic to have adults of that type in our society. It is widely conceded that what drug usage has done to the fabric of our society is a tragedy of national proportions. We do not disagree with that. However, it is not the type of potential disaster that has caused the Court or us to find a governmental interest compelling enough to permit suspicionless testing. It has been lurking as a background condition for our determinations, but that is all. Its presence has been referred to, but the disaster or tragedy has been some additional horrible element, some terrible threat to safety that can flow from the presence of drugs—some shooting, some explosion, some crash of train, truck, or aircraft, or some breach of top secret national security. The record

shows no such possibility here. Nor does it show that the incremental difficulties involved in athletics elevated the drug danger so far above the norm that the government interest became compelling.

The District has alluded to the possibility that it could incur liability if it knowingly fielded a team of drug-affected students. No doubt it could. We agree that it need not do that, but our concession is a far cry from saying that the District can mandatorily test everyone. Given the standard made possible by *T.L.O.*, the District's argument might well justify individualized testing; on this record, it does not justify random testing.

Thus, when we mix all of the elements together—the slight weight in favor of efficiency, the privacy

interest, the governmental interest, and the discretionary factor—and step back to look at the compound they yield, it becomes apparent that the Policy violates the Fourth Amendment. It follows that it also violates Article I, Section 9 of the Oregon Constitution.

It is important to understand the contours and outer limits of our holding. We do not, as we have already suggested, decide that there could be no appropriate individualized testing program. More than that, we do not say that there could never be a case where a random search would be appropriate in a school setting. See, e.g., *In re Isiah B*, 176 Wis.2d 639, 500 N.W.2d 637 (after a series of shootings on campus, rumors indicated that there would be a shootout on November 19, 1990; a random search of

lockers on that date was upheld), cert. denied, — U.S.—, 114 S.Ct. 231, 126 L.Ed.2d 186 (1993). But see *Brooks v. East Chambers Consol. Indep. Sch. Dist.*, 730 F. Supp. 759 (S.D.Tex.1989) (initial and random drug testing of all students who wish to participate in extracurricular activities violates the Fourth Amendment), *aff'd*, 930 F.2d 915 (5th Cir.1991); *Derdeyn v. University of Colorado*, 832 P.2d 1031 (Colo.App.1991) (random drug testing of athletes violates Fourth Amendment; governmental interest not compelling) *aff'd*, 863 P.2d 929 (Colo.1993); *Odenheim v. Carlstadt-East Rutherford Regional Sch. Dist.*, 211 N.J.Super. 54, 510 A.2d 709 (Ch.Div.1985) (drug testing of all students violates Fourth Amendment). Moreover, we do not decide whether a program based upon the

truly voluntary consent of individual parents to have their child randomly tested—not, no testing, no playing—would obviate the difficulties we find with the Policy.

Before concluding, we must acknowledge that in *Schaill v. Tippecanoe County Sch. Corp.*, 864 F.2d 1309 (7th Cir.1988), the court upheld a random drug testing program very similar to the one we now review. Perhaps that court found a more compelling set of facts than we discover here, but we are unable to say so after reading the opinion. We believe, instead, that the Seventh Circuit has unduly minimized the privacy interests of students. It has also given undue weight to the governmental interest by focusing on the general problems generated by the drug plague, rather than

upon the question of whether the danger to safety is so high as to be compelling.<sup>3</sup> We could fill more pages reiterating what we have already said, but, in a nutshell, we simply do not agree with the Seventh Circuit.

### CONCLUSION

We understand the importance of having drug-free children, and the sorrow our society is reaping from the fact that the drugs which have invaded it have found their way into our children's hands. We also understand the deep concerns of parents, teachers,

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<sup>3</sup> We note that the *Schaill* court balanced the students' privacy interests against the school district's "substantial interest in enforcement of its proposed random urinalysis program." 864 F.2d at 1321 (emphasis added). In contrast, subsequent Supreme Court cases have allowed random urinalysis programs only after finding compelling governmental interests that outweigh employees' diminished expectations of privacy. See *Skinner*, 489 U.S. at 626-33, 109 S.Ct. at 1418-21; *Von Raab*, 489 U.S. at 670-77, 109 S.Ct. at 1393-96.

administrators, and school boards. We have no doubt that the District and those associated with it have proceeded in all good faith.

However, we also understand the concern of our forebears and the importance of the protections given by the constitutional provisions which prohibit unreasonable searches and seizures. We are all too aware of the dangers to our liberties that those provisions are designed to protect against and of the constant pressures upon them, despite centuries of living with and under their protections.

We have found that we must live with a certain amount of discomfort, even danger, if we are to maintain constitutional protections. If they are to continue to exist and flourish, we and

our children must understand them, profit from them, and believe in them. They are, after all, just words, ideas, beliefs, and principles. But if we are vigilant there is a great deal of power in the word "just."

Given the Fourth Amendment, given our traditions, given our law, we are constrained to hold that the Policy is invalid under the Fourth Amendment. That being so, Oregon would find it invalid under Article I, Section 9, of its Constitution. As we have already indicated, it would probably do so with less lucubration, and with less spilt ink.

REVERSED and REMANDED

REINHARDT, Circuit Judge concurring:

Although I am in complete agreement with the reasoning and the result in

Judge Fernandez's opinion for the court, I write separately to emphasize that while our opinion holds expressly that Vernonia School District's drug testing policy is violative of Article I, Section 9 of the Oregon Constitution, it also necessarily holds that the policy violates the Fourth Amendment to the United States Constitution. Indeed, the opinion cannot be read otherwise: there is no way to "avoid" a federal constitutional holding in this case, because Article I, Section 9 and the Fourth Amendment are textually identical and are interpreted "coextensively." Moreover, our decision is based almost exclusively on the application of federal law. Under the circumstances, our holding cannot be confined to one of Oregon law.

Generally, federal courts will avoid federal constitutional issues when the alternative ground of decision is one of state statutory or constitutional law. *Hewitt v. Joyner*, 940 F.2d 1561, 1565 (9th Cir.1991) (state "no [religious] preference" clause, rather than dissimilar religion clauses of First Amendment, held proper ground for decision). Where, however, a question involves identical or "coextensive" state and federal constitutional provisions, a holding based on state constitutional law does not "avoid" answering the federal question as well. As both Oregon law and Judge Fernandez's opinion for the court make clear, Article I, Section 9 and the Fourth Amendment are textually "coextensive" and are interpreted

identically.<sup>1</sup> See *State v. Flores*, 280 Or. 273, 279-81, 570 P.2d 965, 968-69 (1977). ("[T]here is no reason, based on either the text or the history of Article

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<sup>1</sup> The Fourth Amendment reads:

The right of the people to be secure in their person, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Article I, section 9 of the Oregon Constitution provides:

No law shall violate the right of the people to be secure in their persons, houses, papers, and effects, against unreasonable search or seizure; and no warrant shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the person or thing to be seized.

I, Sec. 9, to suppose that that section has a different meaning from the Fourth Amendment."). Therefore, a decision on the meaning of Article I, Section 9 is by necessity also a decision on the meaning of the Fourth Amendment. Any attempt to limit our decision to Article I, Section 9 would be sheer flim-flammetry.

We acknowledged this simple fact in *Los Angeles County Bar Ass'n v. Eu*, 979 F.2d 697, 705 n.4 (9th Cir.1992). In *Eu*, we held that the right to access to the courts provided in the California Constitution and the Fourteenth Amendment were coextensive and decided plaintiff's right-to-access claim under the federal provision. The Supreme Court, without any analysis, adopted the same approach in *Wisconsin v. Constantineau*, 400 U.S. 433, 27 L.Ed.2d 515, 91 S.Ct. 507 (1971).

In *Constantineau*, the Court struck down a Wisconsin statute on the basis of federal due process without addressing the dissent's assertion that an identical due process provision of the Wisconsin Constitution was sufficient to dispose of the case.

Interestingly, Chief Justice Lucas of the California Supreme Court has suggested that state courts, when faced with complex and sensitive constitutional questions implicating coextensive state and federal provisions, should defer decision on the state provision in favor of the federal one. See *Sands v. Morongo Unified School Dist.*, 53 Cal.3d 863, 281 Cal.Rptr. 34, 809 P.2d 809 (1991) (en banc) (religious invocation and benedictions at public high school violate coextensive clauses of the

federal and California Constitutions). Such deferral, Justice Lucas explained, would invite early review of the state court's decision by the United States Supreme Court, the "primary interpreter and protector of the guarantees of the Bill of Rights. . . ." *Id.* 281 Cal.Rptr. at 59, 809 P.Ld at 834-835 (Lucas, J., concurring). I point this out because if Justice Lucas is correct, and we were to attempt to base our holding solely on Article I, Section 9, we would be faced with the anomalous situation wherein state courts avoid state constitutional questions but freely reach sensitive federal constitutional questions while federal courts avoid federal constitutional questions in favor of resolution on the basis of coextensive state constitutional provisions. That

would make even less sense than many of the other contortions in which we engage in our continuing effort to avoid doing justice by relying on arcane procedural precepts.

The process is not as simple as Chief Justice Lucas suggests, however. State courts are free to give broader meaning to state constitutional provisions with similar language, so long as they are relying on state law and not just on their interpretations of federal cases. They may give a more expansive protection to individual rights, but not a lesser one. In any event, this is not that type of case. There is as yet no independent Oregon determination of the status of drug testing under Article I, Section 9. Lacking such guidance, we are obliged to refer to federal law,

specifically to federal judicial construction of the Fourth Amendment.

In any event, there are good common sense reasons why we are unable to avoid a federal decision in this case. Even without the guidance of *Eu* and *Constantineau*, it seems likely that the identical plain language of the Fourth Amendment and Article I, Section 9 will result in similar interpretation. It is true that in the future the Oregon courts could choose to interpret Article I, Section 9 to provide more protection than the Fourth Amendment against random, suspicionless drug searches. As stated above, however, there are as yet no Oregon cases that apply Article I, Section 9 to the question of drug testing. Hence, as Judge Fernandez's opinion correctly states, we are unable

to interpret Article I, Section 9 without "a federal compass"; i.e., we have only Fourth Amendment jurisprudence to guide our analysis. Therefore, we first are obliged to clarify the extent of the Fourth Amendment restraint on random drug searches. Toward that end, we determine that the Vernonia School District's random, suspicionless drug testing policy for interscholastic athletes is inconsistent with the Fourth Amendment. Equipped with our "federal compass," we also determine that the policy is inconsistent with Article I, Section 9. As Judge Fernandez's opinion clearly shows, we could not have reached our conclusion regarding Article I, Section 9 without first holding that the school

district's policy violates the Fourth Amendment.

## APPENDIX B

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United States District Court  
for the District of Oregon.

Civ. No. 91-1154-MA.

WAYNE and JUDY ACTON, guardians ad litem  
for JAMES ACTON,  
*Plaintiffs,*

v.

VERNONIA SCHOOL DISTRICT 47J,  
*Defendant.*

May 7, 1992.

[796 F.Supp. 1354]

## OPINION

MARSH, Judge.

Plaintiffs filed this action for declaratory and injunctive relief claiming that the Vernonia School District's drug testing policy violates their son's rights under the Fourth Amendment of the United States Constitution and Article 1, Section 9 of the Oregon Constitution.

The following constitutes my findings of fact and conclusions of law pursuant to Fed.R.Civ.P. 52.

## FACTS

I. *Background*

Vernonia, Oregon, is a small logging community of approximately 3000 persons including all those living within or near the city limits. Plaintiffs Wayne and Judy Acton reside in Vernonia and their son James, age 12, is enrolled in the seventh grade of Washington Grade School. Due to its small size and somewhat remote location, Vernonia is typified by its central interest in school district activities in general and athletics in particular. Witnesses explained that the entertainment opportunities in Vernonia are fairly limited so that interscholastic athletics play a dominant role in the

community and student athletes are well known and admired. Approximately 60-65% of the high school students and 75% of the elementary school students participate in district sponsored athletics.

The school district employs a small but stable and closely knit teaching staff with deep ties to the community. For instance, two of the teachers who testified at trial grew up and attended school in Vernonia. Randall Aultman, the current principal of Washington Grade School, has a long tenure with the district and has held the positions of Assistant Superintendent and principal of the high school. Other teachers who testified had years of experience in the district, and I was impressed by their knowledge and concern for the community, its students and school system.

Aultman and the teachers testified that, up until the early 1980s, discipline at the Vernonia schools was not a problem. The teachers were well acquainted with the students and their families and students were generally cooperative and respectful both in the classrooms and during after-school activities. Drug and alcohol use, although present, was limited to certain small "fringe" elements of the student population. Then, in the mid-to-late 1980s, the staff began noticing a startling and progressive increase in students' use of drugs and alcohol. As the administration became more aware of the problem, it began investigating its possible source. Aultman met with the teaching staff and asked them to look for any signs of drug or alcohol use to gauge the magnitude of

the problem and to try to determine what responsive steps should be taken.

In the meantime the glamorization and use of drugs and alcohol became more blatant. All of the teachers who testified at trial expressed how appalled and helpless they felt as students increasingly expressed their attraction to, and vocal defense of, the use of drugs. Students boasted about drug use and regaled one another with stories of the latest "high" or "party". Class decorum suffered. One teacher, who had never experienced classroom discipline problems in the past, was ready to give up 15 years of service because of her frustration and apparent inability to deal with this new situation. Outbursts of profane language during class, rude and obscene statements directed at other students, and a general

flagrant attitude that there was nothing the school could do about their conduct or their use of drugs or alcohol typified a usual day. Organizations formed within the student drug culture taking such names as the "Big Elks" or the "Drug Cartel." Loud "bugling" or "head butting" were the calling cards of these groups. Drug paraphernalia was confiscated on schools grounds, and open use of drugs was observed at a local cafe across the street from the high school.

Drug and alcohol use also invaded the sports program. Students consumed alcohol on a bus after a game. Others stole alcohol from a store after a track meet. Ron Svenson, a teacher and wrestling coach, testified that suspected drug use contributed to the injury of a wrestler who failed to execute a basic

maneuver. When visiting the hotel room of the student the next day the smell of marijuana permeated the area. Svenson also gave convincing testimony that drug use affected certain football players in that they ignored or forgot well-drilled safety routines. He also expressed a concern that the use of intoxicants would slow down their reaction time and hence, make them more susceptible to injury. Svenson's concerns were corroborated by the testimony of Dr. DuPont, who explained the deleterious effects of drugs and alcohol on a person's motivation, memory, judgment, reaction, coordination and performance.

Svenson also explained that a student injured in a regular physical education class is much more apt to disclose an injury than one engaged in interscho-

lastic activity, given the highly competitive atmosphere of the latter. This sense of pride and desire to stay in the game, when coupled with the numbing influence of drugs, became a significant concern to all involved in the athletic program.

School officials had a clear perception that the discipline problems they were experiencing were the result of substance abuse. Informal interviews with responsible students and parents confirmed that fact. Based upon the administration's investigation, it also became clear that the leaders of this activity were also the leading student athletes. Thus, the very center of activity of the school and the community was endangered. Further, the administration was concerned that the corruption of

the school's leading athletes might have a significant poisoning impact upon the broader student population, including the younger and more impressionable elementary school students who would eventually seek to emulate their elders. No evidence was presented that refuted any of the facts set forth nor the conclusions reached by the school officials.

Following its initial investigation, the school administration attempted to address this problem and deter drug and alcohol use through education. Special classes were held on the effect and addictive nature of drugs. Special speakers were invited who the school hoped would have a particular charm with the students. Seminars within classes, polls, and theatrical presentations were all tested and failed to achieve any sig-

nificant impact on the disruptive atmosphere. The day after the presentation of a play directed at the evils of drug use, several sophomore athletes were caught cutting classes to hold a party where arrests took place for the use of intoxicants. The administration even brought in a specially trained dog to sniff for drugs in locker area, but none of these efforts deterred the students. As Dr. DuPont confirmed, youth who use drugs are typically in denial and think they can control their drug use. Thus, simply telling them that drug use is bad for their health and that they should stop using is invariably ineffective. DuPont testified that what youth really need is a compelling reason or incentive to stop using drugs.

The evidence amply demonstrated that

the administration was at its wits end and that a large segment of the student body, particularly those involved in interscholastic athletics, was in a state of rebellion. Disciplinary actions had reached "epidemic proportions." The coincidence of an almost three-fold increase in classroom disruptions and disciplinary reports along with the staff's direct observations of students using drugs or glamorizing drug and alcohol use led the administration to the inescapable conclusion that the rebellion was being fueled by alcohol and drug abuse as well as the student's misperceptions about the drug culture. It also became readily apparent to staff that, unless it took immediate action, the problem was going to get far worse and widespread before it got better. At one point, the administration

felt that the only practical solution was mass expulsion. Fortunately for the city of Vernonia, school officials remained vigilant in their efforts and continued to pursue less drastic alternatives.

Spurred on by an article in the local Oregonian, the idea of a drug testing program was considered. While the idea had been discussed before, concerns over its legality had deferred its consideration in favor of exhausting other alternatives. But sometime in 1988, borne out of necessity, the idea was investigated. A study was made of such programs across the country. Legal opinions were studied, legal counsel obtained, and parent meetings were held. Finally, with the blessing of the administration, a unanimous vote of parents at the meeting, and approval of the superintendent a plan was

submitted to the School Board and approved for implementation beginning in the fall of 1989.

## II. *Defendant's Drug Testing Policy*

All students who desire to participate in interscholastic athletics are required to sign a form authorizing the District to conduct a test on a urine specimen provided by the student as a prerequisite to participation in the athletic program. The test requirement is applied to all students and is limited to determining whether the student has been using illegal drugs and/or alcohol.

All students in the athletic program are tested at the beginning of each athletic season in which they participate. During the season, student athletes are tested at random on a weekly basis. The

names of all students participating in sports during that season are placed in a "pool" and approximately ten percent of the names are drawn from the "pool" each week. A student draws numbers representing names from the "pool," but is not aware of the names he or she draws. Students whose numbers are drawn are tested one at a time throughout that day.

The procedure for the test varies slightly for boys and girls. Boys begin the process by filling out a portion of a specimen control form which assigns the student a number. The student is then given a testing packet which contains a cup and a vial. The student enters an empty locker room with a male school official acting as a monitor. The monitor opens the packet and provides the student with the cup. The student then

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proceeds to a urinal to produce the sample. While producing the sample, the student remains fully clothed and has his back to the monitor. The monitor is present to assure that there is no tampering and remains 12 to 15 feet behind the student.

After producing the sample, the student returns the cup to the monitor. The monitor checks the sample for temperature and signs of tampering. The monitor then transfers the sample into a vial, and the student places a lid on the vial. The vial is sealed with security tape which the student signs and dates. The vial is assigned a number which coincides with the student's number on the specimen control form and then is placed in a plastic bag which is also sealed and signed and dated by the student. Finally, the stu-

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dent completes the specimen control form by verifying that the specimen is his and that the specimen and package were securely sealed in his presence.

The procedure for girls differs only in that a female school official acts as a monitor and the sample is produced in an enclosed stall with a toilet. The monitor remains outside the stall and listens for signs of tampering.

The samples are sent for testing to Metrolab under security procedures designed to protect the chain of possession. Metrolab technicians do not know the identity of the person being tested and rely solely upon the assigned numbers for identification. The test screens for amphetamines, cocaine, marijuana, and alcohol and has an accuracy of approximately 99.94%. Test results are reported by telephone to authorized Vernonia School District personnel. Positive results are also mailed to the district superintendent.

If a student's test is positive, a second test will be administered as soon as possible to confirm the results. Parents will be notified after the second positive test. If the second test is negative, no further action will be tak-

en. If the second test is positive, the school notifies the parents or guardians and conducts a hearing with the student and his or her parents. At this hearing, the student will be given the option of either participating in an assistance program and taking a weekly drug test for six weeks or suspension from the athletic program for the remainder of the current season and the next athletic season. The student will be retested before beginning the next season for which he or she is eligible.

At trial, Aultman testified that, though not spelled out in the written policy, a student athlete who commits a second offense may also continue participating in the athletic program if he or she submits to counseling and weekly urinalysis.

### III. Basis of the Plaintiffs' Claim

In the Fall of 1991, James Acton, a seventh grade student attending Washington Grade School in the Vernonia School District, signed up to participate in district-sponsored football. To participate in football, James had to take a physical examination.<sup>2</sup> James attended the first football practice and received the District's consent form for drug and alcohol testing. After discussing the form with his parents, they decided not to sign it. James and his parents scheduled a meeting with Aultman.

At the meeting, the Actons explained to Aultman that they objected to the drug testing policy because it required James to submit to a urinalysis in the absence of any evidence that he had used drugs or

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<sup>2</sup> The physical examination included giving a urine sample.

alcohol. Aultman informed the Actons that James could not participate in district-sponsored athletics without a signed consent form. The Actons notified the district superintendent, Ellis Mason, of their decision. Mason confirmed that James could not participate in district-sponsored sports without a signed consent form. There is no dispute that the policy was applied to James in the same manner as it was applied to all other students who sought to participate in interscholastic athletics and was not based upon any individualized suspicion that James had used drugs or alcohol.

## DISCUSSION

I. *The Fourth Amendment*<sup>3</sup>

The Fourth Amendment to the United States Constitution provides:

"The right of the people to be secure in their persons, houses, papers and effects against unreasonable searches and seizures shall not be violated, and no warrant shall issue but upon probable cause, supported by Oath or Affirmation, and particularly describing the place to be searched and the persons or things to be seized."

The collection and testing of urine constitutes a "search" within the meaning of the Fourth Amendment. *Skinner v. Railway Labor Executives Assn.*, 489 U.S. 602, 109 S.Ct. 1402, 1413, 103 L.Ed.2d 639 (1989). The urinalysis test is a

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<sup>3</sup> It is undisputed that defendant's drug testing program constitutes a "state action" for the purposes of establishing the threshold constitutional inquiry. See e.g. *Brooks v. East Chambers Consol. Ind. School Dist.*, 730 F.Supp. 759, 762-3 (S.D.Tex.1989) *aff'd* 930 F.2d 915 (5th Cir.1991).

"search," regardless of whether the act of urination is observed, because the test necessarily discloses facts about which an ordinary citizen has a reasonable expectation of privacy. *National Treasury Employees Union v. Von Raab*, 816 F.2d 170, 175-6 (5th Cir.1987) *aff'd* 489 U.S. 656, 109 S.Ct. 1384, 103 L.Ed.2d 685 (1989). Procedures for collecting urine samples necessarily invade a personal function "traditionally shielded by great privacy." *Id.*, 109 S.Ct. at 1418. The Fourth Amendment applies to government searches undertaken for a purpose other than criminal law enforcement. See e.g. *National Treasury Employees Union v. Von Raab*, 109 S.Ct. at 1390 (urinalysis testing of customs service employees who face potential of dismissal must satisfy Fourth Amendment reasonableness require-

ment).

In the criminal context, the Fourth Amendment dictates that searches conducted without a warrant are *per se* unreasonable, subject to a few well-delineated exceptions. *Katz v. United States*, 389 U.S. 347, 357, 88 S.Ct. 507, 514, 19 L.Ed.2d 576 (1967). The "essential purpose" of a warrant is to protect citizens' privacy interests and assure that any searches or seizures are "not the random or arbitrary acts of government agents." *Skinner*, 109 S.Ct. at 1415; see also *Delaware v. Prouse*, 440 U.S. 648, 654-55, 99 S.Ct. 1391, 1396-97, 59 L.Ed.2d 660 (1979) (proscriptions of Fourth Amendment designed to avoid the 'grave danger' of abuse of official dis-

cretion).<sup>4</sup>

The application of the Fourth Amendment to a civil administrative context is a relatively recent development in the law. The majority of the cases that have addressed this issue have done so in the employment context. For example, in *Skinner*, railroad employees challenged several provisions of the Federal Railroad Administration's regulations which required railroads to conduct urine, blood and breath tests following accidents or violations of certain safety rules to assist in its investigation and

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<sup>4</sup> In *Prouse*, the Court held that random automobile "safety checks" conducted by police officers without the benefit of any objective criteria to guide their discretion were unconstitutional. The Court noted however, that its holding "does not preclude ... states from developing methods for spot checks that involve less intrusion or that do not involve the unconstrained exercise of discretion. Questioning of all oncoming traffic at roadblock-type stops is one possible alternative." 440 U.S. at 664, 99 S.Ct. at 1401.

to take whatever remedial actions were necessary against employees. Positive tests could result in administrative discipline, including dismissal, but would not subject an employee to criminal prosecution. The Court noted that, given the factual context, "a warrant would do little to further these [governmental] aims." *Id.*, 109 S.Ct. at 1415. Further, the Court explained that although some "quantum" of individualized suspicion would "usually" be required in the absence of probable cause, that "a showing of individualized suspicion is not a constitutional floor, below which a search must be presumed unreasonable." *Id.*, at 1417.

The Court analyzed the challenged regulations by balancing the interests sought to be achieved by the government

against the intrusion upon the employees' privacy to determine if the challenged tests were "reasonable." *Id.*, at 1421-1422; see also *Von Raab*, 109 S.Ct. at 1392 (applying *Skinner* balancing test to urinalysis tests of applicants for customs officials promotions). The Court found that the employees had a diminished expectation of privacy since they worked in a highly safety oriented industry which was already subject to significant regulation. *Id.*, 109 S.Ct. at 1417; see also *Von Raab*, 109 S.Ct. at 1392 (diminished expectation of privacy due to exposure to controlled substances); *IBEW Local 1245 v. Skinner*, 913 F.2d 1454 (9th Cir.1990) (upholding constitutionality of testing employees who work on natural gas and hazardous liquid pipelines); and *Bluestein v. Skinner*, 908 F.2d 451 (9th

Cir.1990), cert. denied, — U.S. —, 111 S.Ct. 954, 112 L.Ed.2d 1042 (1991) (upholding random urinalysis testing of airline personnel with safety responsibilities). The Court concluded that the government's "compelling" interests in railway safety outweighed the employees' privacy concerns. *Skinner*, 109 S.Ct. at 1421; see also *Von Raab*, 109 S.Ct. at 1396.<sup>5</sup>

Thus, although not expressly doing so, the Supreme Court appears to have abandoned the Fourth Amendment "per se" analysis utilized in criminal law in favor of a "balancing" test in which the government, in the absence of individual-

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<sup>5</sup> In *Von Raab*, the Court specifically rejected the employees' contention that the program was invalid because there were so few positive results (approximately five tested positive out of 3600 tested) in light of the significant deterrent effect the tests would have on employees both on and off duty. *Id.*, 109 S.Ct. at 1394-5.

ized suspicion or probable cause, must demonstrate a "compelling need" for the invasion which outweighs the individuals interest in privacy.<sup>6</sup> The Supreme Court's decisions in *Skinner* and *Von Raab*, and the Ninth Circuit's decisions in *IBEW* and *Bluestein*, demonstrate that the government may show a "compelling need" which obviates the need for either a warrant or individualized suspicion if security or safety interests are implicated.

Although the types and magnitude of safety and security concerns addressed in *Skinner* and *Von Raab* differ from those

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<sup>6</sup> This is not meant to imply that there exists a separate and distinct "administrative" search doctrine. See *Schaill v. Tippecanoe County School Corp.*, 864 F.2d 1309, 1316, n. 7, reh'g denied (7th Cir.1988) (discussing debate surrounding 'administrative search' doctrine). Instead, as discussed more fully *infra*, I find that the existence (or absence) of criminal penalties is but one factor which I must consider in determining the weight of individual privacy interests.

faced by students, teachers and coaches who participate in middle and high school athletic programs, courts have acknowledged that the public school is a unique setting in which the constraints of the Fourth Amendment are "relaxed." In *New Jersey v. T.L.O.*, 469 U.S. 325, 105 S.Ct. 733 83 L.Ed.2d 720 (1985), a 14 year old student who was discovered smoking in the lavatory was taken to the assistant vice principal's office. Upon hearing the report, the assistant vice principal searched the student's purse for cigarettes. During the search, he discovered rolling papers, marijuana, a pipe, a fairly substantial amount of money and possible records of drug sales to other students. Thereafter, the state brought delinquency charges against the student and the admissibility of the items seized

by the vice-principal was ultimately appealed to the Supreme Court. The Court held that the Fourth Amendment's prohibition on unreasonable searches and seizures applies to searches conducted by public school officials, but that the school setting requires some "easing" of the restrictions to enable school administrators to preserve order and maintain an adequate educational environment. *Id.*, at 334, 340-41, 105 S.Ct. at 738, 742-43. Thus, although student athletes who use drugs do not pose the magnitude of a threat to society that, say, an intoxicated air traffic controller might, the fact that the searches take place within the school setting, as part of a program designed to maintain discipline, enforce athletic program regulations, and protect the safety of student athletes,

is a significant factor that must weigh heavily in any balancing process.

Further, relying upon the "fundamental command" of the Fourth Amendment that all searches be "reasonable," the Court in *T.L.O.* held:

"[T]he legality of a search of a student should depend simply on the reasonableness, under all the circumstances, of the search. Determining the reasonableness of any search involves a twofold inquiry: first, one must consider whether the action was justified at its inception ... second, one must determine whether the search as actually conducted was reasonably related in scope to the circumstances which justified the interference in the first place."

*Id.*, at 341-42, 105 S.Ct. at 742-43 (citations omitted). In a footnote, the Court pointed out that it was not confronted with the issue of whether individualized suspicion was an essential element of the reasonableness standard.

*Id.*, at 343 n. 8, 105 S.Ct. at 743 n. 8. However, the Court emphasized that the "Fourth Amendment imposes no irreducible requirement of such [individualized] suspicion." *Id.* Thus, although the context of the *T.L.O.* case involved the search of an individual student, the Court expressly held that "any search" of a student be measured by "reasonableness" based upon the totality of the circumstances and balancing of relative interests.

Whether and how the "reasonableness" analysis and rationale supporting the decisions in *Skinner*, *Von Raab*, and *T.L.O.* may be extended to an athletic program under guidelines adopted by a school board is a question that has yet to be directly addressed by either the Supreme Court or the Ninth Circuit. However, several other courts have confront-

ed the issue. In *Schaill v. Tippecanoe County School District*, 864 F.2d 1309 (7th Cir.1988) *reh'g denied* (1989)<sup>7</sup>, several students challenged the constitutionality of the school system's program for random urine testing for interscholastic athletes. Under the program, all students desiring to participate in interscholastic athletics and their parents had to agree to submit to random urinalysis testing. A positive test would result in suspension from participation in all or a portion of the athletic season unless the student agreed to participate in a drug treatment program. In light of the Supreme Court's holding in *T.L.O.*, the court began its inquiry by noting that the probable cause and warrant re-

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<sup>7</sup> Although *Tippecanoe* was ultimately published in 1989, it predates the Supreme Court's decisions in *Skinner* and *Von Raab*.

quirements were not applicable to the program. Instead, the court found that the test should be under the "general Fourth Amendment standard of reasonableness." *Id.*, at 1315. However, because the program was premised upon a lack of any individualized suspicion, the court found that the school district bore a "heavier burden" to justify its contemplated actions. *Id.*; compare *Brooks*, 730 F.Supp. at 764 (search of students must be based upon individualized suspicion absent "extraordinary" circumstances). Although the court did not quantify how heavy that burden should be, I find that the analysis presaged the Supreme Court's "compelling need" standard in *Skinner* and *Von Raab*. Accordingly, the court balanced the privacy interests of the students against the government's objectives

and the nature and degree of the intrusion. Factors which the court found weighed in favor of the program's reasonableness included: first, the random nature of the testing which necessarily limited official discretion; second, the limited non-punitive purposes for the search; third, evidence to support a finding that the use of drugs posed a "particular threat" to athletes; fourth, evidence of at least three student injuries that had been caused or exacerbated by drug impairment; fifth, substantial evidence that alternatives methods of investigation would not adequately serve the school's goals; sixth, the diminished expectations that student athletes enjoy by the public nature of the events and by the existence of other regulations and restrictions; and seventh, the incorpora-

tion of adequate privacy safeguards such as the strict limits on disclosure of test results and the lack of direct visual observation during the testing procedures.

In *Derdeyn v. University of Colorado*, 832 P.2d 1031 (Colo.App.1991), students challenged a drug testing program for intercollegiate athletics at the University of Colorado. In that program, a student was randomly selected for a rapid eye movement test which, if found positive, would lead to a urinalysis test. The court held that the University's interest in securing a drug free athletic program was not compelling and held that the testing procedures violated the Fourth Amendment of the U.S. Constitution. The court enjoined the University from continuing the testing procedures in

the absence of reasonable suspicion to believe that an athlete was using drugs. The court specifically noted that there was no evidence in the record to indicate that student athletes used drugs more than other persons of similar age among the general population and no evidence of actual drug problems or drug related injuries among University athletes. See also *Hill v. NCAA*, 7 Cal.App.4th 1738, 273 Cal.Rptr. 402, petition for review granted 276 Cal.Rptr. 319, 801 P.2d 1070 (1990) (college drug testing program invalid under California constitution given lack of evidence to show utility of program outweighed students' privacy rights); and *Brooks*, 730 F.Supp. 759, 764-65 (urinalysis of all students participating in all extracurricular activities unconstitutional given laxity in

testing procedures and lack of any evidence to show connection between drug use, participation in extra-curricular activities and injuries sought to be avoided); and *Anable v. Ford*, 653 F.Supp. 22, 40-41, modified in part 663 F.Supp. 149 (W.D.Ark.1985) (finding urinalysis of individual students suspected of marijuana use unconstitutional given unreliable test results and insufficient evidence to justify intrusive procedures utilized).

Based upon the guidance provided by these cases, I find that I must determine whether defendant's urinalysis testing program is "reasonable" in light of all of the justifications underlying the institution of the program and the circumstances surrounding its administration. To assess the "reasonableness" of the program, I find that I must engage in a

balancing test. Because defendant stipulates that it had no individualized suspicion that James had ever used drugs or alcohol, I find that the school district must demonstrate a "compelling need" for the program. Although it is impossible to define the term "compelling need" with any degree of specificity, I find that the cases discussed, *supra*, are instructive and provide an adequate "spectrum" by which I may measure the testing procedures and justification put forth in this case. The Supreme Court, in *Skinner* and *Von Raab*, teaches that a search may be "reasonable" in the absence of a search warrant or individualized suspicion where the safety and security interests of the public significantly outweigh the privacy interests of certain employees who work in industries that carry a high risk of

serious accidents or who are exposed to illegal substances. *Brooks, Hill and Derdeyn* teach that a school may not justify a random urinalysis program upon amorphous statistics or generalized notions about the national drug problem. Finally, the Seventh Circuit Court of Appeals, in *Tippecanoe*, teaches that a schools random urinalysis program for interscholastic athletes which employs the least intrusive means possible to effectuate this goal may withstand constitutional scrutiny if based upon specific evidence of drug related injuries and disciplinary concerns.

In considering all of the evidence produced in this case, I find that there are several factors which weigh in favor of the district's drug testing policy. First, and foremost, there is evi-

dence in the record of specific instances in which coaches have observed athletes perform poorly and unsafely while under the influence of some intoxicant. On one occasion, a wrestler was seriously injured and subsequently observed to smell of marijuana.

Next, there is evidence to show that athletes at Vernonia, perhaps more because of its rural setting, are role models for the entire community. The "Big Elks," the "Drug Cartel" or their successors are clearly leaders for other students and if they are deterred from drug use by threat of suspension from the athletic program, then it is reasonable for school administrators to believe that other students will also be deterred. The testimony of Dr. DuPont was particularly persuasive on the significant de-

terrent effects that a random drug testing program can have on a youthful population.

Further, the affected activity is limited in scope and narrowly tailored to effectuate the district's objectives. Unlike the policy challenged in *Brooks*, which applied random drug testing to all extra-curricular activities, the Vernonia policy is limited to the one activity which, in that community, is likely to have the greatest impact on the drug and alcohol abuse problem given the documented evidence of incidents involving particular students. The regulations already require that students undergo a physical examination prior to participation, the locker rooms themselves are open spaces and do not provide a great deal of privacy when students shower and

change. Thus, drug testing is but one part of a substantial number of other rules and regulations governing athletes.

In addition, the middle to high school setting itself tends to favor the administration's policy given the stated goals and the deference that courts should accord school administrators in matters concerning discipline and maintaining order. I am satisfied by the evidence that defendant did not institute this policy to engage in a "fishing expedition" for drug and alcohol use to carry on a moral crusade. Rather, I find that defendant demonstrated that its concerns were for the limited purposes of addressing student safety in athletic programs and, ultimately, maintaining discipline

in the classrooms.<sup>8</sup> As defendant acknowledges, the school plays a significant role in the development of its students and as such, owes a duty to take such steps as are reasonable and necessary to protect students from harm. Although it is purely speculative, I cannot help but wonder what liability defendant might have faced had it failed to take the next step in combatting the drug and alcohol problem when confronted with such clear evidence that students were abusing drugs and alcohol and engaging in sports.

Also significant is the fact that

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<sup>8</sup> I also note that while I find the *Derdeyn* and *Hill* cases helpful to my analysis of the law to apply, those cases involve college students who have, for the most part, reached the age of adulthood. University programs are far less structured, class attendance is voluntary and discipline is largely left to the students. I also note that the role of an athletic program on a large University is far different than that of a rural middle school or high school with limited alternative activities.

the school district considered and actually tried several alternative methods of dealing with the increase in drug and alcohol related disciplinary problems prior to instituting the drug testing program. As I noted earlier, the school instituted several educational programs designed to discourage drug use and found that the "subtle" approach not only failed, but seemed to cause further disruptions. Less intrusive "screening" methods have proven to be ineffective. As Dr. DuPont explained, visual observations (even by professionals) are simply not reliable indicators of whether that student may have consumed alcohol or drugs. DuPont testified that, although some people display outward manifestations of drug or alcohol use, many others do not, making application of the reason-

able and individualized suspicion standard an unreliable and impractical tool to aid in preventing accidents before they happen. Thus, random drug urinalysis testing was seen as the next logical step in a progressive attempt to address the drug and alcohol problems.

I further find that defendant has taken significant steps to limit the extent of the intrusion. Students at Vernonia, like the employees subject to testing in *Skinner* and *Von Raab*, may produce the sample without a direct eye witness. Test results remain confidential and may only be used to suspend the student from participation in the athletic program—test results are not disclosed to criminal authorities and may not be used as the basis for school disciplinary proceedings such as suspension or expul-

sions. The scope of the test is limited to the detection of illegal drugs and alcohol, thus ensuring that prescription drugs or contraceptive use will remain undisclosed. The testing procedures used, unlike those in *Anable*, are highly effective and have an accuracy of 99.94%.

Finally, the program limits the degree of discretion that may be exercised by coaches and school administrators. Testing during the season is random and thus, does not implicate the kind of unfettered discretion which raised the constitutional concerns surrounding automobile "safety checks" in *Delaware v. Prouse*.

When I balance all of the factors present in this case against James' legitimate expectations of privacy, I find that his privacy interests must give way

to the district's need to maintain order and protect its students from injury by use of the least intrusive means available to it. Although I recognize that the program caters to the lowest common denominator and that students who have never consumed alcohol or drugs may suffer a degree of embarrassment, I feel that defendant has come forward with sufficient evidence to show that its drug testing program serves a "compelling need." I emphasize that my holding today is limited to the unique circumstances which confronted the Vernonia School staff. Defendant has proven, beyond all possible doubt, that it was faced with a crisis situation in attempting to maintain order and discipline. Based upon the observations of teachers and coaches, the district came to the inescapable con-

clusion that their problems were directly related to the students' unlawful use of alcohol and drugs. Further, the district's decision to target its athletic program for regulation given the predominant role that athletics play in this small rural community demonstrates that defendant made every effort to tailor this program to the least intrusive extent possible. Thus, whether a similar program could withstand constitutional scrutiny in large metropolitan schools or in other small rural schools will necessarily depend, at a minimum, upon evidence of drug related problems, attempts to address the problems in less intrusive ways, and establishing a connection between the stated objectives and the means

chosen to achieve those objectives.<sup>9</sup>

Based on the foregoing, I find that defendant's drug testing program was justified at its inception and is reasonably related in, scope to the circumstances that exist in Vernonia. Accordingly, plaintiffs have failed to demonstrate that the defendant's drug testing program unconstitutionally interferes with their son's right to be free from unreasonable searches or seizures under the Fourth Amendment.

## II. *The Oregon Constitution, Article I § 9*

Article I § 9 of the Oregon Constitution provides:

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<sup>9</sup> For example, Vernonia's drug program might not be "reasonable" as applied to a large metropolitan high school where the students who engage in drug use may neither participate in, nor have contact with students who participate in interscholastic athletics.

"No law shall violate the right of the people to be secure in their persons, house, papers, and effects, against unreasonable search, or seizure; and no warrant shall issue but upon probable case [sic], supported by oath, or affirmation, and particularly describing the place to be searched, and the person or thing to be seized."

In *State v. Owens*, 302 Or. 196, 206, 729 P.2d 524 (1986), the court stated that Article I, section 9 protects privacy interests, and that a "search" for constitutional purposes occurs when a person's privacy interests are invaded. The Oregon Supreme Court has interpreted Article I, section 9 independently, but parallel to federal court interpretations of the Fourth Amendment. *State v. Brown*, 301 Or. 268, 273, 721 P.2d 1357 (1986).

Oregon courts have not directly addressed administrative, non-criminal, suspicionless searches of the type pre-

sented by a school's random drug testing program.<sup>10</sup> However, in *State v. Tourtillott*, 289 Or. 845, 618 P.2d 423 (1980) cert. denied, 451 U.S. 972, 101 S.Ct. 2051, 68 L.Ed.2d 352 (1981), the court addressed the constitutionality of game checkpoint stops.<sup>11</sup> During one of

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<sup>10</sup> Prior to 1980, the Court of Appeals examined and upheld the validity of administrative, non-criminal searches in four cases and treated the requirements of Oregon and federal search and seizure law as interchangeable. See the Discussion in 46 Op.Atty.Gen. \_\_\_\_ (No. 8191, Nov. 16, 1987) (Slip op. at 25), citing *Eddie's Supper Club v. OLCC*, 23 Or.App. 493, 543 P.2d 19 (1975) (OLCC searches of licensed premises without warrants or individualized suspicion); *State ex rel. Accident Prev. Div. v. Foster*, 31 Or.App. 291, 570 P.2d 398 (1977) (statute allowing warrant to search business premises for safety violations may issue without individualized probable cause); *State v. Westside Fish Co.*, 31 Or.App. 299, 570 P.2d 401 (1977) (warrantless search of food processing plant by Fish and Game Commission); and *Accident Prevention Division v. Hogan*, 37 Or.App. 251, 586 P.2d 1132 (1978) (warrant issued without probable cause to determine compliance with safety regulation).

<sup>11</sup> The roadblocks were manned by officers of the Oregon State Police Game Division and were set up to check hunters' compliance with the game laws, to check hunting licenses and to gather statistics on hunter success on the opening day of deer hunting season. *Tourtillott*, 289 Or. at

these checkpoint stops, Ms. Tourtillott was arrested for driving with a revoked license and was ultimately sentenced to imprisonment for one year. There was no dispute that the officers had neither probable cause nor reasonable suspicion to believe that the defendant had been involved in criminal activity at the time she was stopped. On appeal, the defendant argued that the stop violated Article I § 9 of the Oregon Constitution and the Fourth Amendment of the U.S. Constitution because the stop was not based upon reasonable suspicion. The court rejected the contention that reasonable or individualized suspicion was a necessary requisite for a valid stop. Instead, the court followed the reasoning from United States Supreme Court cases

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848, 618 P.2d 423.

which upheld the constitutional validity of border searches and highway safety checks. *Id.*, 289 Or. at 854-857, 618 P.2d 423. Like the federal decisions, the Oregon court held that to determine the reasonableness of the checkpoint stop procedures, it must balance the government's interest in the promotion of legitimate interests against the defendant's right to be free from unreasonable seizures. *Id.*, at 857-859, 618 P.2d 423. The Oregon court enunciated the following four factors which it considered particularly significant in determining the constitutionality of a particular government procedure:

- (1) the importance of the governmental interest at stake;
- (2) the psychologically and physically intrusive nature of the procedure;
- (3) the efficiency of the procedure

in reaching its desired goals;  
and

- (4) the degree of discretion the procedure vests in the particular officers.

*Id.*, at 864, 618 P.2d 423. Although the court ultimately held that the game checkpoint was lawful, it emphasized that its holding was limited to determining the constitutionality of a stop, not a search. *Id.*, at 861, 618 P.2d 423. The dissent criticized the majority for its reliance upon Supreme Court decisions which involved administrative searches:

"I believe the majority errs in transferring that evaluation [of the degree of official discretion] from the context in which the Supreme Court developed it—the context of inspections for preventative or corrective purposes—to the different and wider context of seizures aiming at the discovery and punishment of past offenses."

*Id.*, at 873, 618 P.2d 423, Linde, J. dis-

senting.

Thereafter, in *Nelson v. Lane County*, 304 Or. 97, 743 P.2d 692 (1987), the court considered an appeal from a civil judgment in which the plaintiff sought civil remedies against three Oregon state police officers who stopped and detained her at a sobriety roadblock. On appeal, the state argued that the roadblock was justified under the reasoning in *Tourtillott* and as an administrative search. Compare *State v. Anderson*, 304 Or. 139, 743 P.2d 715 (1987) and *State v. Boyanovsky*, 304 Or. 131, 743 P.2d 711 (1987) (roadblocks designed to gather evidence for criminal prosecution of drunk drivers rather than administrative enforcement unconstitutional absent individualized suspicion). The three-justice plurality did not reach the issue of the

constitutionality of the roadblock, but instead decided the case on statutory grounds, ruling that, unlike the game regulations which authorized the checkpoint in *Tourtillott*, there was no express legislative authorization to conduct the sobriety checkpoints. The court's holding appeared to be an outgrowth of the "unconstrained exercise of discretion" concern voiced by the Supreme Court in *Delaware v. Prouse*. Although the roadblock stops were not the product of a decision made by a single officer out in the field as in *Prouse*, the roadblocks were developed as part of the Oregon State Police Patrol Technique Manual—a group which is not "politically accountable," or specifically authorized by a politically accountable body to conduct such inspections. *Id.*, 304 Or. at

105, 743 P.2d 692. In *dictum*, the plurality suggested that sobriety checkpoints might be lawful if properly authorized and "providing sufficient indications of the purposes and limits of executive authority, and if carried out pursuant to a properly authorized administrative program designed and systematically administered to control the discretion of non-supervisory officers." *Id.*, at 104, 743 P.2d 692, citing *State v. Atkinson*, 298 Or. 1, 9-10, 688 P.2d 832 (1984).<sup>12</sup> Two dissenting justices argued that the majority had failed to adequately consider the state's interest in protecting its citizens from harm suffered

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<sup>12</sup> In *Atkinson*, the court held that warrantless, suspicionless non-criminal "inventory" searches of lawfully impounded cars were permissible under Article I § 9 if properly authorized and administered in a systematic, non-discretionary fashion. *Id.*, 298 Or. at 10, 688 P.2d 832.

by intoxicated drivers and would apply the four-part test of *Tourtillott*. *Id.*, 304 Or. at 115-119, 743 P.2d 692, Peterson, C.J. dissenting.

Although Oregon courts have not directly addressed the issues in this case or the legal standards to be applied to administrative searches under Article I § 9 of the Oregon Constitution, I find that the Supreme Court's decisions in *Tourtillott* and *Nelson* provide me with sufficient guidance to determine the validity of the challenged drug testing program in this case. This finding is influenced, to a large extent, by the parties' stipulation that jurisdiction is proper in this court. I agree with counsel that remanding the state constitutional challenge to the state court at this stage in the proceedings would not

serve the interests of judicial economy, efficiency or be required in the interests of comity. Compare *Castellano v. Board of Trustees*, 937 F.2d 752, 758 (2nd Cir.), cert. denied — U.S. —, 112 S.Ct. 378, 116 L.Ed.2d 329 (1991) (holding court 'should' dismiss supplemental state constitutional claim in interest of comity).

In light of *Nelson*, I find that I must first determine whether the drug testing procedures in this case were properly "authorized." Under the Oregon statutes, school districts are considered "corporate bodies." O.R.S. 332.072. School boards in each district are expressly authorized to "transact all business coming within the jurisdiction of the district and to sue and be sued." *Id.* Further, school boards are charged

with responsibility "for educating children residing in the district" which includes determining "what things are detrimental to the successful management, good order and discipline of the schools and the rules required to produce these conditions." *Id.*; and *Burkitt et al. v. School District No. 1, et al.*, 195 Or. 471, 492, 246 P.2d 566 (1952) (citations omitted). This grant of authority expressly includes the power to develop a drug abuse program as provided by O.R.S. 336.222:

"In accordance with rules adopted by the State Board of Education . . . each district school board shall adopt a comprehensive drug abuse policy and implementation plan including, but not limited to . . . alcohol and drug abuse prevention curriculum and public information programs . . ."

Unlike the Oregon State police department, which is an executive agency,

the Vernonia School Board is a politically accountable body. Each board member is elected by the voters in the District area. Each is subject to recall and must face re-election. Thus, voters who oppose the policy may lobby the board and voice their objections through the electoral process.

Based on the foregoing, I find that the challenged drug testing program is authorized by Oregon statutes and was properly promulgated and implemented by the Vernonia School District.

As a preliminary matter, I note that the Oregon Supreme court has not directly addressed the issue of whether a urinalysis test is a "search." However, Oregon courts have held that a "search" occurs when a person's privacy interests are invaded. *Owens*, 302 Or. at 206, 729 P.2d

524. In *State v. Milligan*, 304 Or. 659, 748 P.2d 130 (1988), the court held that compelled extraction of blood constitutes a search under Article I § 9. I find that a urinalysis test is a "search" under Article I § 9 of the Oregon constitution. Having determined that the drug policy is properly "authorized" pursuant to Oregon law and that the urinalysis test is a "search," I now turn to the issue of whether the program is valid under Article I § 9 of the Oregon Constitution. Based upon the court's holding in *Tourtillott*, I find that the relevant inquiry is whether the program is "reasonable." The "reasonableness" of the program must be determined by balancing the school district's asserted interests against the plaintiffs' right to be free from unreasonable intrusions into his

privacy. In conducting this balancing test, I shall consider each of the four factors articulated by the court.

The first factor is the importance of the governmental interest at stake. 289 Or. at 864, 618 P.2d 423. In this case, the school district's interest in preventing and deterring drug and alcohol abuse among the student population is highly significant. As I noted previously, there is ample evidence in the record to support the district's claim that alcohol and drug use were the primary causes of disruptions and disciplinary problems during school hours. Further, there is evidence which tends to show that alcohol and drug use contributed to an athlete's injury and/or would eventually lead to additional injuries.

The second factor is the psychologi-

cally and physically intrusive nature of the procedure. *Id.* Again, as discussed in greater detail *infra*, I find that the district program uses the least intrusive method possible by insuring the confidentiality of the test results and by permitting students to produce the sample without direct witness observation. Most significantly however, is the fact that the search program was instituted to correct behavior and deter future unlawful conduct—it was not designed to punish the students for past conduct and does not expose the students to possible criminal sanctions or investigation.

The third factor, the efficiency of the procedure in reaching the desired goals, is best demonstrated by the results actually achieved in this case. Disciplinary reports are back down to

"normal" levels and there have been no subsequent reports of athletic injuries attributable to drug or alcohol use. As the school officials testified, the program runs smoothly and causes no disruptions to either the school or athletic program.

The final factor, the degree of discretion left to individual officers, is not implicated by the program at all since testing is required of all applicants and then conducted on a random, lottery-type basis during the course of the season.

When I consider all of these factors in light of the unique circumstances present in the Vernonia School district, I find that the balance of interests weighs heavily in favor of the government's interests in maintaining a

healthy and productive scholastic atmosphere. Accordingly, I find that the challenged program is "reasonable" under Article I § 9 of the Oregon Constitution.

### CONCLUSION

Based on the foregoing, I find that defendant's drug testing program is reasonable under the Fourth Amendment of the United States Constitution and Article I § 9 of the Oregon Constitution. Accordingly, plaintiffs' claims for injunctive and declaratory relief are denied.

### APPENDIX C

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UNITED STATES COURT OF APPEALS  
FOR THE NINTH CIRCUIT

No. 92-35520

D.C. No. CV-91-1154-MFM

### ORDER

WAYNE ACTON and JUDY ACTON, guardians ad  
litem for JAMES ACTON,  
*Plaintiffs-Appellant,*

v.

VERNONIA SCHOOL DISTRICT 47J,  
*Defendant-Appellee.*

Before: REINHARDT, BRUNETTI, and  
FERNANDEZ, Circuit Judges

The panel has unanimously voted to deny the appellee's petition for rehearing. The suggestion for rehearing en banc was circulated to the active judges of the court, and no judge requested a vote for en banc consideration.

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The petition for rehearing is DENIED  
and the suggestion for rehearing en banc  
is REJECTED.

FILED: July 8, 1994.